

Trueblood Programs



Cassie Cordell Trueblood, et al., v. Washington State Department of Social and Health Services, et al. Monthly Report to the Court Appointed Monitor

June 30, 2026

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Trueblood Programs



Background

On April 2, 2015, the Court ordered the Department of Social and Health Services to file monthly reports with the Trueblood Court Monitor. DSHS reports on the efforts to comply with court orders to provide timely competency evaluation and restoration services to class members, as indicated below:

Defendants shall file a report with the Monitor on the fifth day of every month, which shall include:

- (1) the number of days between when a court ordered provision of competency services and when provision was completed, for each person ordered to receive competency services during the previous month;*
- (2) data regarding the number of evaluators, bed capacity, physicians, and other resources needed to provide timely competency services;*
- (3) the steps taken in the previous months to implement this order;*
- (4) when and what results are intended to be realized by each of these steps;*
- (5) the results realized in the previous month;*
- (6) the steps planned to be taken in the following month;*
- (7) certification by Defendants that they are fully compliant with all deadlines that became due in the previous month;*
- (8) Defendants' estimate for when the wait times will reach seven days or less, and all data relied on in making that estimate; and*
- (9) any other information the Monitor informs Defendants is necessary for the Monitor to fully review Defendants' actions and advise the Court.*

The April 2015 order was modified on Feb. 8, 2016. Additional orders were issued on July 7, 2016, Aug. 15, 2016, and April 26, 2017. Narrative status updates on these orders begin on **page 74**.

This monthly report is submitted on June 30, 2026 and primarily covers May 2026 activity. Additionally, this report displays class member data for competency services in two periods: April 1-30, and May 1-31, 2026. The April data are considered "mature," and the May data are a

“first look” data set. In addition to the mature and first-look data discussed above, Tables 3-11 also show 11 additional months of mature data for a total of 13 months of mature and first-look data contained in each table. April 2015 is the baseline month for data analysis; please refer to Appendix A to view an entire set of the data contained in Tables 3-11.

The data are dynamic, and the most recent results generally will continue to change and become more reliable over time as the data mature. Likewise, due to the Trueblood lawsuit, case prioritization, civil conversion cases, triage cases, periodic lengthy wait times and other considerations, some cases will not show as completed cases in the data until the cases are resolved. The department cautions against comparing the data in this publication to other department publications due to differences in data maturity, time frames, databases, and other sourcing parameters that may not allow for a direct comparison.

Evaluation and restoration information specific to individual class members appear in this report’s appendices.

Class Member Status Summary Information

Infectious Disease Impacts on Facility Admissions

Since Aug. 15, 2024, BHHA’s Western State Hospital and Eastern State Hospital inpatient facilities have operated without any COVID-19 related admissions restrictions. DSHS’ Behavioral Health & Treatment Center – Steilacoom Unit has had one COVID-19 related admissions pause between April 10-27, 2026.

The Washington State Department of Health no longer requires COVID-19 data tracked at the facility or at the county-level. Data is now aggregated to [larger regional areas](#). This report no longer includes monthly COVID-19 infection numbers by facility. If a BHHA facility has admissions impacted by COVID-19 or another infectious disease in the future, any restrictions or closures will be reported. Final counts of reported COVID-19 cases in BHHA facilities are available in the [October 2024 Court Monitor Report](#).

Analysis of Mature Data: April 1, 2015 through April 30, 2026

Data Note:

These data are based on number of days from signature and not the new timeframes as described in the April 26, 2017 Court Order.

The average monthly referrals for each type of service are as follows:

- Average monthly jail-based evaluation orders signed for April 2015-April 2026
 - WSH: 336.4
 - ESH: 79.6
 - Both hospitals: 416.0
- Average monthly inpatient evaluation orders signed for April 2015-April 2026
 - WSH: 13.7
 - ESH: 8.6
 - Both hospitals: 22.3
- Average monthly restoration orders signed for April 2015-April 2026
 - WSH: 92.2*
 - ESH: 24.0
 - Both hospitals: 134.4*
 - Hospitals plus Behavioral Health and Treatment Center (BHTCs): 160.4**
- Average monthly BHTC restoration orders signed for August 2018-April 2026
 - BHTCs: 26.0**
- Average monthly OCRP restoration orders signed for Phase 1, 2, and 3 (All OCRP Locations):
 - July 2020-April 2026: 2.4***
 - November 2022-April 2026 (since start of Phase 2 services): 3.6***
 - August 2024-April 2026 (since start of Phase 3 services): 4.8***

Referral Notes:

* From April 2015-July 2018, this figure also includes restoration orders for the BHTC's; therefore, these figures exceed the WSH figures, and the two hospital figures combined.

****** Prior to August 2018, BHTC data was combined with WSH. From August 2018 onward, BHTC data is reported separately. Yakima CRP closed to patients on July 26, 2021. MLCRP – Cascade Unit closed to patients on June 30, 2024.

******* OCRP treatment began in Phase 1 regions between July 1-Sept. 1, 2020, in the Phase 2 region on Oct. 31, 2022, and in Phase 3 regions between Aug. 1-Oct. 1, 2024 and an additional facility in August 2025. Only clients whose wait for treatment was jail-based are included in this data measure.

Summary Points Related to Orders and Timeliness Based on Mature April Data

Analysis Note:

Terms used in this analysis: “flat” indicates a value has not changed from the previous month. “slight” indicates a change of less than 5%, “moderate” indicates a change of between 5% and 9.9%, and “significant” indicates a change of 10% or more from the previous month.

Orders:

- For April, the number of jail-based evaluation orders assigned to WSH increased slightly by 13 orders to 480 (2.8%). ESH’s jail-based evaluation orders decreased significantly in April, from 105 orders to 86 orders (-18.1%).
- In April, inpatient evaluation orders at WSH decreased from 33 to 21. ESH orders decreased from 10 orders in March to nine in April. Due to the small numbers of orders using the inpatient evaluation legal authority, there are often dramatic swings, in both the positive and negative directions, in the data from month to month.
- WSH received 109 restoration orders in April, a significant decrease (-18.0%) from March’s 133 orders. ESH had 34 orders in April, a slight decrease (-2.9%) compared to March’s 35 orders.
- In March’s BHTC data, at 60 days data maturity, the BHTCs received a total of 12 restoration orders. This month, April BHTC data is the initial month of mature data. At this time, 11 restoration orders were received. The April BHTC order numbers may change further as the BHTC restoration order data tends to update more slowly than other facilities, and as a result may continue to change over the next 45-60 days.

***** Prior to August 2018, BHTC data was included with the data for WSH. From August 2018 onward, BHTC data is reported separately. Yakima CRP closed to patients on July 26, 2021. MLCRP – Cascade Unit closed to patients on June 30, 2024.

Wait Times:

- Jail-based 14-day evaluation completion times at WSH decreased slightly (-2.4%) to 11.3 days on average in April, from order to completion. ESH evaluation times increased slightly (3.5%) to 11.8 days in April. The combined average, across the system, decreased slightly to 11.4 days on average to completion, which remains significantly below the 14-day target. Systemwide on-time completion remained steady at 96 percent.
- The average inpatient evaluation admission wait time at WSH decreased slightly to 4.5 days in April from 4.7 days in March. ESH's average wait time in April increased significantly to 4.2 days on average from 3.8 days in March. Both facilities are significantly below the seven-day target. It is worth noting that the average inpatient evaluation wait times are subject to significant monthly swings in either direction due to the small numbers of patients being admitted and evaluated through this legal authority.
- Restoration admission wait times at WSH decreased significantly to 4.2 days in April, down from 4.9 days in March. The ESH average admission wait time also decreased significantly to 3.0 days in April, from 5.0 days in March. Both facilities remain significantly below the seven-day target.

Timeliness:

- At WSH, timely jail-based evaluation completion rate (within 14 days from receipt of order) in April remained steady at 95 percent. ESH's on-time completion rate in April remained at **100 percent for the third consecutive month**.
- At WSH, overall timeliness for inpatient evaluation admissions in April increased to a 96 percent on-time completion rate within seven days from receipt of order. ESH's on-time completion rate remained at **100 percent for the third consecutive month**.
- At both hospitals and the BHTCs combined, overall timeliness for inpatient restoration admissions for April remained steady with a 98 percent completion rate within seven days.

Outliers:

For a full definition of outliers as it applies to Trueblood and more information on individual outliers, please see the “**Data Tables 2a. through 2c.**” subsection.

- In April, the total number of outliers among the three legal authorities (in-jail evaluations, inpatient evaluations, and inpatient restorations) increased to three. In-jail outliers increased to three, inpatient evaluations outliers remained at zero, and inpatient restorations outliers increased to one.
- In April, the maximum days waiting for an in-jail evaluations outlier increased from zero days to 50.
- In April, there were zero inpatient evaluations outliers.
- In April, there were zero inpatient restorations outliers.

Civil Conversion Cases

Data Tables 1a. Through 1c.

As of May 31, 2026, there were 78 patients in-residence at ESH who had been converted from a forensic legal authority to a civil legal authority, with 14 patients having a special finding of violent felony (SFVF, formerly HB 1114) determination. At WSH there were 115 civil conversion patients, with 22 SFVF determinations.

Table 1a. Long-Term Civil Commitment: Patients with a Special Finding of Violent Felony (SFVF)

	ESH	WSH	Total
Total patients with 90-, 180-, and 365-Day Civil Conversion Commitments	78	115	193
Special Finding of Violent Felony (SFVF)	14	22	36
Not Special Finding of Violent Felony (SFVF)	64	93	157
Patients this reporting period who have received their first 90-, 180-, and 365-Day Civil Conversion Order	10	7	17
Special Finding of Violent Felony (SFVF)	0	0	0
Not Special Finding of Violent Felony (SFVF)	10	7	17

Data Note:

Total patients is based on the in-residence population as of the snapshot date May 31, 2026. The current reporting period is May 1-31, 2026.

BHHA continues efforts to transfer non-SFVF civil patients out of the state hospitals to other state-run facilities and HCA-contracted long-term civil commitment facilities. Civil beds at Olympic Heritage Behavioral Health and the Oak and Baker Units at Maple Lane continue to be used to their fullest extent, and the department is in routine communication with LTCC facilities regarding their bed availability. **Between March 2023 and March 31, 2026, 370 civil conversion patients from ESH and WSH transferred to LTCC beds.** LTCC facility transfer efforts do have limitations and each facility has varying restrictions on the patient population that they can serve, with common disqualifying criteria including complex medical needs, neurocognitive disorders, traumatic brain injuries, and significant behavioral issues.

Table 1b. Long-Term Civil Commitment: Civil Conversion Patients Transferred from State Hospitals to Long-Term Civil Commitment Facilities

Transferred to Long-Term Civil Commitment Facility	2023 Total	2024 Total	Q1-2025	Q2-2025	Q3-2025	Q4-2025	Q1-2026	Total
Navos	14	26	4	6	4	6	11	71
Recovery International	5	15	7	8	8	9	8	60
Telecare	3	44	13	11	12	9	14	106
University of Washington		13	7	3	5	12	21	61
Wellfound	24	28		1	3	4	2	62
South Sound Behavioral	8							8
Astria		2						2
Totals:	54	128	31	29	32	40	56	370

Data Note:

Prior versions of this table included several civil commitment patients that were not civil conversion patients, as well as community partners that are no longer receiving patients.

Civil conversion patients with an SFVF determination are not under consideration for transfer to LTCC facilities because of the public safety procedures set forth in RCW 10.77.139 and are currently only treated at state facilities.

Table 1c. Long-Term Civil Commitment: Civil Conversion Patients Transferred from State Hospitals to other State-run Inpatient Facility

Transferred to Other State Facility	2024 Total	Q1-2025	Q2-2025	Q3-2025	Q4-2025	Q1-2026	Total
Maple Lane Baker Unit				4	26	4	34
Maple Lane Oak Unit	22	10	9	11	3	5	60
Olympic Heritage Behavioral Health	39	20	34	15	28	28	164
Totals:	61	30	43	30	57	37	258

Data Note:

Data matures over time, and these numbers may change from previous versions of this report.

Outlier Cases (Mature) April 2026

Data Tables 2a. through 2c.

Evaluations and restorations not completed within standard timelines become outliers. The monthly outlier population cases have been defined as:

- Population is active span cases from the “mature” data month. Currently, the “mature” month is April 2026.
- Evaluation spans: are incomplete or were completed after the end of the “mature” month and wait more than 20-days for an evaluation (in-jail), or admission (inpatient), or a change of client status to out of jail, or order withdrawn by court.
- Restoration spans: are incomplete or were completed after the end of the “mature” month and wait more than 40-days for admission, or a change of client status to out of jail, or order withdrawn by the court.

Table 2a. Outlier Cases (Mature)

Type	Number of spans:	span begin to span end, or end of reporting period	
		Minimum Number of days	Maximum Number of days
In-Jail Evaluations	3	28	50
Inpatient Evaluations	0	0	0
Inpatient Restorations	0	0	0

Table 2 continues below and details reasons contributing to delays in completing evaluations for outlier cases. Page 13 above lists the Trueblood definition of “Outlier Cases.”

In Table 2b below, the reasons for the jail-based evaluation delays are provided as “Medical Record/Collateral Information.” This was due to additional time needed to acquire medical history for the evaluations and schedule consultations.

Table 2b. Summary of Evaluator Delay Reasons

REASONS FOR DELAY IN DATABASE	In-Jail Evaluations	Inpatient Evaluations	Inpatient Restorations
Defendant No Show			
Defendant Reschedule			
Evaluator availability			
Police reports availability			
Relevant discovery availability			
Jail/Outside facility staffing issues			
Attorney scheduling conflicts			
Jail return/Discharge with no eval done			
Requires amended court order			
Charges adjudicated prior to eval			
New charges - wait for new court order			
Client released from custody & can't be located			
Defendant would not participate without attorney present			
Defendant would not cooperate with evaluation			
Interpreter needed but court order did not request it			
Other patient cooperation problem			
Evaluator rejected by prosecutor			
Medical Record/Collateral Information	3		
Interpreter scheduling conflicts			
Defense Expert scheduling			
police reports			
Attorney No Show			
Jail conference room availability/scheduling issues			
Processor error/clerical error			
Delay in Report Distribution			
Client or other required evaluation personnel have contracted or bee			
No COVID-safe option to conduct the evaluation			
Delay in Submission of Evaluation Report due to Staff Furlough			
Order Processing Delay due to Staff Furlough			
Late Assignment			
Attorney No Response for Scheduling PR Eval			
Order not received timely			
Defendant ITA'd while retained			
Delay in report distribution by evaluator			
Delay in report distribution in QA			
Technical difficulties during telehealth evaluation			
Pending			
Unknown			
Not Applicable ²			

Table 2b Data Notes:

¹**Continued summary of evaluation delay reasons** An incomplete case may have more than one delay reason. Therefore, the number of delay reasons may be greater than the number of outlier cases.

²**Not applicable** indicates that none of the delays listed in the table apply to the competency service specified, or the case was completed within the compliance deadline with no delay reason recorded.

Finally, Table 2 concludes with a focus on the reasons outlier cases experience delays prior to and during the inpatient services admissions process. There were no admissions delays this month.

Table 2c. Summary of Admission Delay Reasons

REASONS FOR DELAY IN DATABASE	In-Jail Evaluations	Inpatient Evaluations	Inpatient Restorations
Bed availability			
Medical clearance availability			
Police reports availability			
Relevant discovery availability			
NCIC/Processing			
Hospital staffing issues			
Jail/Outside facility staffing issues			
Jail return/Discharge with no eval done			
Requires amended court order			
Charges adjudicated prior to eval			
Other patient cooperation problem			
Evaluator rejected by prosecutor			
Medical Record/Collateral Information			
Awaiting Instructions from Court			
change from JH to PR			
Client released from custody & can't be located			
In Custody - Not In Jail			
in hospital - furlough from jail			
Medical Clearance Needed			
Client contracted or has been exposed to COVID-19			
Client Being Reevaluated			
Order Processing Delay due to Staff Furlough			
Jail Cannot Provide Transport			
Late Receipt of Court Order			
Lack of engagement from defense attorney			
Defense attorney has no contact with client			
Unknown			
Not Applicable ²	3		

Table 2c Data Notes:

¹**Continued summary of evaluation delay reasons** An incomplete case may have more than one delay reason. Therefore, the number of delay reasons may be greater than the number of outlier cases.

²**Not applicable** indicates that none of the delays listed in the table apply to the competency service specified, or the case was completed within the compliance deadline with no delay reason recorded.

Class Member Status Data Tables

Data Tables 3 through 5B.

The following series of tables present 13 months of class member status data. Descending from the top of the table, the first 12 months of data, ending with April 2026, are mature class member status data. At the bottom of the table, May 2026's data, highlighted in light orange, are "first look" and are subject to change over time as the data matures. Data highlighted in lavender indicate a data value that has matured and has been updated during the most recent reporting period. To view the complete set of class member status data, from April 2015 to present, please refer to Appendix A.

Table 3. Class Member Status Western State Hospital - Jail-based Competency Evaluations

MONTH	Court Orders Signed ²	Days from order signature to ³ :						Court Orders Completed ⁴	Days from order signed to completion ⁵		within 14 days from order signature date ^{5,6}	within 14 days from receipt of order ^{5,6}	within 14 days from receipt of order or 21 days from order signature date ^{5,6}
		hospital receipt of order		hospital receipt of discovery		end of reporting month for incomplete referrals			Average	Median			
		Average	Median	Average	Median	Average	Median						
May-25	465	0.4	0.0	0.7	0.0	n/a	n/a	455	11.8	12.0	86 %	90 %	91 %
Jun-25	476	0.3	0.0	0.6	0.0	n/a	n/a	462	11.9	13.0	88 %	92 %	94 %
Jul-25	557	0.5	0.0	0.6	0.0	n/a	n/a	549	11.8	13.0	84 %	89 %	90 %
Aug-25	479	0.4	0.0	0.5	0.0	n/a	n/a	499	12.0	13.0	87 %	92 %	92 %
Sep-25	511	0.3	0.0	0.5	0.0	n/a	n/a	478	12.1	13.0	83 %	87 %	89 %
Oct-25	518	0.3	0.0	0.6	0.0	n/a	n/a	537	11.7	13.0	86 %	90 %	91 %
Nov-25	405	0.4	0.0	0.8	0.0	n/a	n/a	428	11.9	13.0	91 %	93 %	93 %
Dec-25	475	0.3	0.0	0.7	0.0	n/a	n/a	484	12.5	13.0	84 %	87 %	88 %
Jan-26	465	0.4	0.0	0.6	0.0	n/a	n/a	452	12.2	13.0	79 %	87 %	87 %
Feb-26	414	0.3	0.0	0.6	0.0	n/a	n/a	431	12.0	13.0	85 %	92 %	92 %
Mar-26	467	0.3	0.0	0.7	0.0	n/a	n/a	478	11.6	13.0	90 %	95 %	95 %
Apr-26	480	0.3	0.0	0.6	0.0	n/a	n/a	453	11.3	12.0	90 %	95 %	95 %
May-26	480	0.2	0.0	0.6	0.0	6.2	5.0	456	11.7	12.0	90 %	93 %	93 %

Table 3 Data Notes:

¹**Data before August 2018** is previously reported data from the legacy data systems. Data from August 2018 onward, is updated data pulled from the new BHHA - Forensic Data System and is based on the number of periods individuals waited for competency services in jail.

²**Court Orders Signed** is the number of court orders signed in the specified month for those individuals waiting for competency services in jail and any additional in-jail stays (i.e., periods of waiting for competency services in jail) starting in the specified month due to a class member entering jail from the community while awaiting a court-ordered competency service. This

number does not include court orders signed for individuals waiting for competency services outside of jail.

³**"Days from order signature to"** represents the number of days from the beginning of a period of waiting in jail for competency services to the specified timeframe (i.e., hospital receipt of order, hospital receipt of discovery, end of reporting month of incomplete referrals, and completion or the end of a period of waiting in jail for competency services).

⁴**Court Orders Completed** is the number of cases completed in the month specified. Cases are completed if the report is sent to the court, the order is withdrawn or dismissed, or the client is no longer waiting for services in jail. Counts prior to August 2018 are taken from previously reported class member populations provided with monthly court report submissions. Counts since August 2018 are from data recorded in the BHHA Forensic Data System.

⁵**From August 2018 onward**, the following data elements exclude periods of waiting for competency services in jail that have not yet ended: completion and the percent completed variables. Once the waiting period has ended, those cases will be included in the wait-time and percents.

⁶**From April 2015 to June 2016**, the in-jail evaluation compliance deadline was within 7 days from court order signature date, and from July 2016 to April 2017, the in-jail evaluation compliance deadline was within 14 days from court order signature date. As of May 2017, DSHS compliance data are calculated and summarized in this table based on the modified deadline for in-jail competency evaluations outlined in the order DSHS received on 4/26/2017 adopting the Mediated Settlement Agreement, Dkt. # 389, stating: "DSHS shall complete in-jail competency evaluations within the shorter of either a) 14 days from receipt of order or b) 21 days from signature of order".

To comply with the new requirements, this report captures two additional sets of compliance information beginning in May 2017. The first is percentage of orders completed within 14 days from receipt of order (if the order was received within 0 and 7 days from order signature date) (or 14 days from the beginning or notification of a period of waiting in jail). The second is percentage of all orders completed within either of the two compliance deadlines: 14 days from receipt of order (if the order was received within 0 and 7 days from order signature date) (or 14 days from the beginning or notification of a period of waiting in jail) or 21 days from order signature date (if the order was received after 7 days from order signature date). In addition, starting in August 2018, the in-jail evaluation compliance calculations are adjusted based on Good Cause Extensions granted by the court.

Table 4. Class Member Status Western State Hospital - Inpatient Competency Evaluation Services

MONTH	Court Orders Signed ²	Days from order signature to ³ :						Court Orders Completed ⁴	Days from order signed to completion ⁵		Percent complete within 7 days from order signature date ^{5,6}	Percent completed within 7 days from receipt of order ^{5,6}	Percent completed within 7 days from receipt of order or within 14 days from order signature date ^{5,6}
		hospital receipt of order		hospital receipt of discovery		end of reporting month for incomplete referrals							
		Average	Median	Average	Median	Average	Median		Average	Median			
May-25	12	0.1	0.0	0.1	0.0	n/a	n/a	18	4.0	2.0	94 %	94 %	94 %
Jun-25	21	0.5	0.0	0.0	0.0	n/a	n/a	20	5.1	5.0	95 %	100 %	100 %
Jul-25	23	0.6	0.0	0.3	0.0	n/a	n/a	23	4.5	4.0	96 %	100 %	100 %
Aug-25	19	0.2	0.0	0.1	0.0	n/a	n/a	20	3.8	3.0	100 %	100 %	100 %
Sep-25	20	0.3	0.0	0.1	0.0	n/a	n/a	18	3.9	3.5	100 %	100 %	100 %
Oct-25	15	0.9	0.0	0.2	0.0	n/a	n/a	15	3.9	4.0	100 %	100 %	100 %
Nov-25	18	2.3	0.0	0.5	0.0	n/a	n/a	14	6.4	5.0	86 %	86 %	86 %
Dec-25	20	0.6	0.0	0.6	0.0	n/a	n/a	25	5.6	5.0	92 %	92 %	96 %
Jan-26	24	0.3	0.0	0.3	0.0	n/a	n/a	17	4.4	5.0	100 %	100 %	100 %
Feb-26	27	0.6	0.0	0.1	0.0	n/a	n/a	27	4.3	4.0	89 %	96 %	93 %
Mar-26	33	0.2	0.0	0.2	0.0	n/a	n/a	31	4.7	4.0	90 %	94 %	94 %
Apr-26	21	0.3	0.0	0.3	0.0	n/a	n/a	27	4.5	4.0	96 %	96 %	96 %
May-26	36	0.6	0.0	0.4	0.0	4.1	2.0	30	4.9	4.5	87 %	93 %	93 %

Table 4 Data Notes:

¹**Data before August-2018** is previously reported data from the legacy data systems. Data from August 2018 onward, is updated data pulled from the new BHHA - Forensic Data System and is based on the number of periods individuals waited for competency services in jail.

²**Court Orders Signed** is the number of court orders signed in the specified month for those individuals waiting for competency services in jail and any additional in-jail stays (i.e., periods of waiting for competency services in jail) starting in the specified month due to a class member entering jail from the community while awaiting a court-ordered competency service. This number does not include court orders signed for individuals waiting for competency services outside of jail.

³**"Days from order signature to"** represents the number of days from the beginning of a period of waiting in jail for competency services to the specified timeframe (i.e., hospital receipt of order, hospital receipt of discovery, end of reporting month of incomplete referrals, and completion or the end of a period of waiting in jail for competency services).

⁴**Court Orders Completed** is the number of cases completed in the month specified. Cases are completed if the client is admitted for services, the order is withdrawn or dismissed, or the client is no longer waiting for services in jail. Counts prior to August 2018 are taken from previously reported class member populations provided with monthly court report submissions. Counts since August 2018 are from data recorded in the BHHA Forensic Data System.

⁵**From August 2018 onward**, the following data elements exclude periods of waiting for competency services in jail that have not yet ended: completion and the percent completed variables. Once the waiting period has ended, those cases will be included in the wait-time and percents.

⁶**From April 2015 April 2017**, the inpatient evaluation and restoration compliance deadline was within 7 days from court order signature date. As of May 2017, DSHS compliance data are calculated and summarized in this table based on the modified deadline for inpatient competency evaluation and restoration services outlined in the order DSHS received on 4/26/2017 adopting the Mediated Settlement Agreement, Dkt. # 389, stating: “DSHS shall complete inpatient competency evaluation and restorations within the shorter of either a) 7 days from receipt of order or b) 14 days from signature of order”.

To comply with the new requirements, this report captures two additional sets of compliance information beginning in May 2017. The first is percentage of orders completed within 7 days from receipt of order (if the order was received within 0 and 7 days from order signature date) (or 7 days from the beginning or notification of a period of waiting in jail). The second is percentage of all orders completed within either of the two compliance deadlines: 7 days from receipt of order (if the order was received within 0 and 7 days from order signature date) (or 7 days from the beginning or notification of a period of waiting in jail) or 14 days from order signature date (if the order was received after 7 days from order signature date).

Table 5a. Class Member Status Western State Hospital - Inpatient Competency Restoration Services

MONTH	Court Orders Signed ²	Days from order signature to ³ :						Court Orders Completed ⁴	Days from order signed to completion ⁵		Percent complete within 7 days from order signature date ^{5,6}	Percent completed within 7 days from receipt of order ^{5,6}	Percent completed within 7 days from receipt of order or within 14 days from order signature date ^{5,6}
		hospital receipt of order		hospital receipt of discovery		end of reporting month for incomplete referrals							
		Average	Median	Average	Median	Average	Median		Average	Median			
May-25	137	1.1	0.0	0.1	0.0	n/a	n/a	130	4.9	5.0	95 %	96 %	99 %
Jun-25	115	0.9	0.0	0.1	0.0	n/a	n/a	123	4.7	5.0	94 %	96 %	99 %
Jul-25	155	0.7	0.0	0.0	0.0	n/a	n/a	129	4.6	5.0	92 %	93 %	97 %
Aug-25	111	0.5	0.0	0.0	0.0	n/a	n/a	131	5.0	5.0	95 %	95 %	99 %
Sep-25	135	0.4	0.0	0.0	0.0	n/a	n/a	128	4.4	5.0	95 %	95 %	100 %
Oct-25	145	0.4	0.0	0.0	0.0	n/a	n/a	144	4.4	4.0	97 %	99 %	99 %
Nov-25	123	1.0	0.0	0.0	0.0	n/a	n/a	122	5.2	6.0	98 %	100 %	100 %
Dec-25	131	1.4	0.0	0.1	0.0	n/a	n/a	128	5.0	5.0	91 %	94 %	98 %
Jan-26	107	1.5	0.0	0.0	0.0	n/a	n/a	109	5.1	5.0	93 %	94 %	97 %
Feb-26	128	1.1	0.0	0.1	0.0	n/a	n/a	127	5.6	5.0	95 %	96 %	98 %
Mar-26	133	0.7	0.0	0.1	0.0	n/a	n/a	141	4.9	5.0	93 %	94 %	98 %
Apr-26	109	0.4	0.0	0.0	0.0	n/a	n/a	109	4.2	5.0	97 %	98 %	99 %
May-26	114	0.3	0.0	0.0	0.0	2.3	2.0	109	4.8	5.0	98 %	99 %	100 %

Table 5a. Data Notes:

¹**Data before August-2018** is previously reported data from the legacy data systems and includes both WSH and RTF data for those months in this table. Data from August 2018 onward, is updated data pulled from the new BHHA - Forensic Data System, is based on the number of periods individuals waited for competency services in jail, and only includes WSH data for those months in this table.

²**Court Orders Signed** is the number of court orders signed in the specified month for those individuals waiting for competency services in jail and any additional in-jail stays (i.e., periods of waiting for competency services in jail) starting in the specified month due to a class member entering jail from the community while awaiting a court-ordered competency service. This number does not include court orders signed for individuals waiting for competency services outside of jail.

³**"Days from order signature to"** represents the number of days from the beginning of a period of waiting in jail for competency services to the specified timeframe (i.e., hospital receipt of order, hospital receipt of discovery, end of reporting month of incomplete referrals, and completion or the end of a period of waiting in jail for competency services).

⁴**Court Orders Completed** is the number of cases completed in the month specified. Cases are completed if the client is admitted for services, the order is withdrawn or dismissed, or the client is no longer waiting for services in jail. Counts prior to August 2018 are taken from

previously reported class member populations provided with monthly court report submissions. Counts since August 2018 are from data recorded in the BHHA Forensic Data System.

⁵**From August 2018 onward**, the following data elements exclude periods of waiting for competency services in jail that have not yet ended: completion and the percent completed variables. Once the waiting period has ended, those cases will be included in the wait-time and percents.

⁶**From April 2015 April 2017**, the inpatient evaluation and restoration compliance deadline was within 7 days from court order signature date. As of May 2017, DSHS compliance data are calculated and summarized in this table based on the modified deadline for inpatient competency evaluation and restoration services outlined in the order DSHS received on 4/26/2017 adopting the Mediated Settlement Agreement, Dkt. # 389, stating: “DSHS shall complete inpatient competency evaluation and restorations within the shorter of either a) 7 days from receipt of order or b) 14 days from signature of order”.

To comply with the new requirements, this report captures two additional sets of compliance information beginning in May 2017. The first is percentage of orders completed within 7 days from receipt of order (if the order was received within 0 and 7 days from order signature date) (or 7 days from the beginning or notification of a period of waiting in jail). The second is percentage of all orders completed within either of the two compliance deadlines: 7 days from receipt of order (if the order was received within 0 and 7 days from order signature date) (or 7 days from the beginning or notification of a period of waiting in jail) or 14 days from order signature date (if the order was received after 7 days from order signature date).

Table 5b. Class Member Status Residential Treatment Facilities - Inpatient Competency Restoration Services

MONTH	Court Orders Signed ²	Days from order signature to ³ :						Court Orders Completed ⁴	Days from order signed to completion ⁵		Percent complete within 7 days from order signature date ^{5,6}	Percent completed within 7 days from receipt of order ^{5,6}	Percent completed within 7 days from receipt of order or within 14 days from order signature date ^{5,6}
		hospital receipt of order		hospital receipt of discovery		end of reporting month for incomplete referrals							
		Average	Median	Average	Median	Average	Median		Average	Median			
May-25	11	0.5	0.0	0.0	0.0	n/a	n/a	11	5.8	7.0	100 %	100 %	100 %
Jun-25	6	0.1	0.0	0.0	0.0	n/a	n/a	6	4.8	5.5	83 %	83 %	83 %
Jul-25	12	0.7	0.0	0.0	0.0	n/a	n/a	14	6.4	6.0	79 %	86 %	93 %
Aug-25	11	0.1	0.0	0.3	0.0	n/a	n/a	8	6.6	7.0	88 %	100 %	100 %
Sep-25	6	0.1	0.0	0.6	0.0	n/a	n/a	8	5.8	6.0	88 %	88 %	100 %
Oct-25	14	0.1	0.0	0.0	0.0	n/a	n/a	12	5.6	6.0	92 %	92 %	100 %
Nov-25	10	0.2	0.0	0.0	0.0	n/a	n/a	12	5.9	6.0	100 %	100 %	100 %
Dec-25	13	0.2	0.0	0.0	0.0	n/a	n/a	11	6.1	7.0	91 %	91 %	100 %
Jan-26	11	0.0	0.0	0.0	0.0	n/a	n/a	11	6.5	7.0	100 %	100 %	100 %
Feb-26	12	2.1	0.0	0.0	0.0	n/a	n/a	13	5.9	6.0	85 %	85 %	92 %
Mar-26	12	0.2	0.0	0.1	0.0	n/a	n/a	10	5.6	6.0	80 %	90 %	100 %
Apr-26	11	0.5	1.0	0.1	0.0	n/a	n/a	10	5.3	6.5	80 %	90 %	100 %
May-26	6	0.4	0.0	0.0	0.0	n/a	n/a	9	7.0	7.0	67 %	100 %	100 %

Table 5b. Data Notes:

¹**Data before August 2018** is not included because during those months, the RTF data was combined with the WSH data. Data from August 2018 onward, is updated data pulled from the new BHHA - Forensic Data System and is based on the number of periods individuals waited for competency services in jail.

²**Court Orders Signed** is the number of court orders signed in the specified month for those individuals waiting for competency services in jail and any additional in-jail stays (i.e., periods of waiting for competency services in jail) starting in the specified month due to a class member entering jail from the community while awaiting a court-ordered competency service. This number does not include court orders signed for individuals waiting for competency services outside of jail.

³**"Days from order signature to"** represents the number of days from the beginning of a period of waiting in jail for competency services to the specified timeframe (i.e., hospital receipt of order, hospital receipt of discovery, end of reporting month of incomplete referrals, and completion or the end of a period of waiting in jail for competency services).

⁴**Court Orders Completed** is the number of cases completed in the month specified. Cases are completed if the client is admitted for services, the order is withdrawn or dismissed, or the client is no longer waiting for services in jail. Counts prior to August 2018 are taken from

previously reported class member populations provided with monthly court report submissions. Counts since August 2018 are from data recorded in the BHHA Forensic Data System.

⁵**From August 2018 onward**, the following data elements exclude periods of waiting for competency services in jail that have not yet ended: completion and the percent completed variables. Once the waiting period has ended, those cases will be included in the wait-time and percents.

⁶**From April 2015 April 2017**, the inpatient evaluation and restoration compliance deadline was within 7 days from court order signature date. As of May 2017, DSHS compliance data are calculated and summarized in this table based on the modified deadline for inpatient competency evaluation and restoration services outlined in the order DSHS received on 4/26/2017 adopting the Mediated Settlement Agreement, Dkt. # 389, stating: “DSHS shall complete inpatient competency evaluation and restorations within the shorter of either a) 7 days from receipt of order or b) 14 days from signature of order”.

To comply with the new requirements, this report captures two additional sets of compliance information beginning in May 2017. The first is percentage of orders completed within 7 days from receipt of order (if the order was received within 0 and 7 days from order signature date) (or 7 days from the beginning or notification of a period of waiting in jail). The second is percentage of all orders completed within either of the two compliance deadlines: 7 days from receipt of order (if the order was received within 0 and 7 days from order signature date) (or 7 days from the beginning or notification of a period of waiting in jail) or 14 days from order signature date (if the order was received after 7 days from order signature date).

The Outpatient Competency Restoration Program: Data Table 5C.

The OCRP element of the Trueblood Contempt Settlement Agreement that is managed by the Washington State Health Care Authority provides an additional option for courts to order community-based restoration services in a less restrictive environment for defendants with appropriate acuity levels in the 11 counties and four Behavioral Health Administrative Services Organization regions covered by Phases 1 and 2 of the Settlement Agreement. In August-October 2024, Phase 3 OCRP programs covering five additional counties and two additional BHASO regions began services. A third Phase 3 OCRP facility opened in August 2025. The intent of OCRP is to provide the most appropriate level of care to the individual, ideally closer to their home community. Providing restoration services in a safe and cost-effective environment while using the newly available community treatment program should hopefully reduce the number of people wait-listed to receive competency restoration in an inpatient setting.

This month's report covers events from May 1-31, 2026. Data from this month are considered "first-look" and are likely to change as they mature. Data tables reflecting OCRP services are included in Tables 5c, 15, Appendices A, and F. Figures 2, 5, and 6 represent the visual presentation of OCRP data in this report. Only data from Trueblood Class Members appears in the OCRP tables and figures. As a result, some months have no new OCRP data to report.

Many individuals ordered to OCRP will not appear in Table 5c. Table 5c. is restricted to class members, meaning individuals in jail waiting for competency restoration services at any time after the competency order is signed. Currently, many individuals ordered to OCRP are released from jail prior to the court signing the OCRP order and remain in the community until entry into OCRP. The total number of individuals enrolled in an Outpatient Competency Restoration Program (regardless of jail status) is provided in the Trueblood semi-annual report and reported quarterly in **Table 17**. Trueblood Implementation Steps of this report. The OCRP update in Table 17 begins on **page 66** of this month's report. Table 5c. follows on the next page.

Table 5c. Class Member Status OCRP

MONTH	Court Orders Signed ²	Days from order signature to ³ :						Court Orders Completed ⁴	Days from order signed to completion ⁵		Percent complete within 7 days from order signature date ^{5,6}	Percent completed within 7 days from receipt of order ^{5,6}	Percent completed within 7 days from receipt of order or within 14 days from order signature date ^{5,6}
		hospital receipt of order		hospital receipt of discovery		end of reporting month for incomplete referrals							
		Average	Median	Average	Median	Average	Median		Average	Median			
May-25	1	0.5	0.5	0.0	0.0	n/a	n/a	2	2.5	2.5	100%	100%	100%
Jun-25	3	0.3	0.0	0.0	0.0	n/a	n/a	0	n/a	n/a	n/a	n/a	n/a
Jul-25	4	0.1	0.0	0.0	0.0	n/a	n/a	3	2.3	2.0	100%	100%	100%
Aug-25	6	0.3	0.0	0.0	0.0	n/a	n/a	9	23.2	5.0	67%	67%	67%
Sep-25	13	0.4	0.0	0.0	0.0	n/a	n/a	10	11.6	5.5	60%	60%	60%
Oct-25	7	0.0	0.0	0.0	0.0	n/a	n/a	11	8.2	5.0	55%	55%	55%
Nov-25	1	0.0	0.0	0.0	0.0	n/a	n/a	1	1.0	1.0	100%	100%	100%
Dec-25	7	0.7	1.0	0.0	0.0	n/a	n/a	6	3.8	3.5	83%	83%	83%
Jan-26	7	0.9	0.0	0.0	0.0	n/a	n/a	8	3.0	2.5	100%	100%	100%
Feb-26	1	0.0	0.0	0.0	0.0	n/a	n/a	1	3.0	3.0	100%	100%	100%
Mar-26	11	0.5	1.0	0.2	0.0	n/a	n/a	10	5.5	3.0	80%	80%	80%
Apr-26	6	0.4	0.0	0.0	0.0	n/a	n/a	5	3.6	4.0	100%	100%	100%
May-26	3	1.4	1.0	0.0	0.0	n/a	n/a	5	3.6	4.0	100%	100%	100%

Table 5c. Data Notes:

¹The OCRP was implemented July 1, 2020. The data are pulled from the BHHA Forensic Data System and Navigator Case Management System and based on the number of periods individuals waited for competency services in jail.

²**Court Orders Signed** is the number of court orders signed in the specified month for those individuals waiting for competency services in jail and any additional in-jail stays (i.e., periods of waiting for competency services in jail) starting in the specified month due to a class member entering jail from the community while awaiting a court-ordered competency service. This number does not include court orders signed for individuals waiting for competency services outside of jail.

³**"Days from order signature to"** represents the number of days from the beginning of a period of waiting in jail for competency services to the specified timeframe (i.e., hospital receipt of order, hospital receipt of discovery, end of reporting month of incomplete referrals, and completion or the end of a period of waiting in jail for competency services).

⁴**Court Orders Completed** is the number of cases completed in the month specified. Cases are completed if the client is admitted for services, the order is withdrawn or dismissed, or the client is no longer waiting for services in jail. Counts prior to August 2018 are taken from previously reported class member populations provided with monthly court report submissions. Counts since August 2018 are from data recorded in the BHHA Forensic Data System.

⁵**The following data elements** exclude periods of waiting for competency services in jail that have not yet ended: completion and the percent completed variables. Once the waiting period has ended, those cases will be included in the wait-time and percents.

⁶**According to the Settlement Agreement,** “For criminal defendants waiting in jail, an offer of admission to the community outpatient restoration services program will occur within the constitutional timelines for restoration as outlined by the Federal Court.” Therefore, this table captures the 3 compliance deadlines captured for inpatient competency restoration: 1) percent completed within 7 days from court order signature date (as stipulated from April 2015 to April 2017) and 2) percent of orders completed within 7 days from receipt of order (if the order was received within 0 and 7 days from order signature date) (or 7 days from the beginning or notification of a period of waiting in jail) and 3) percent of all orders completed within either of two compliance deadlines: 7 days from receipt of order (if the order was received within 0 and 7 days from order signature date) (or 7 days from the beginning or notification of a period of waiting in jail) or 14 days from order signature date (if the order was received after 7 days from order signature date) (from May 2017 onward as outlined in the order DSHS received on 4/26/2017 adopting the Mediated Settlement Agreement, Dkt. # 389).

Data Tables 6 through 11

Table 6. Class Member Status Eastern State Hospital - Jail-based Competency Evaluations

MONTH	Court Orders Signed ²	Days from order signature to ³ :						Court Orders Completed ⁴	Days from order signed to completion ⁵		within 14 days from order signature date ^{5,6}	within 14 days from receipt of order ^{5,6}	within 14 days from receipt of order or 21 days from order signature date ^{5,6}
		hospital receipt of order		hospital receipt of discovery		end of reporting month for incomplete referrals							
		Average	Median	Average	Median	Average	Median		Average	Median			
May-25	85	1.0	0.0	1.9	1.0	n/a	n/a	76	11.4	13.0	86 %	93 %	100 %
Jun-25	96	0.4	0.0	1.4	0.0	n/a	n/a	106	10.6	12.0	89 %	100 %	100 %
Jul-25	101	0.5	0.0	1.2	0.0	n/a	n/a	97	10.9	13.0	88 %	100 %	100 %
Aug-25	109	0.7	0.0	1.6	1.0	n/a	n/a	88	11.3	13.0	89 %	100 %	100 %
Sep-25	89	0.7	0.0	1.5	0.0	n/a	n/a	115	12.0	13.0	90 %	99 %	99 %
Oct-25	82	0.7	0.0	1.3	0.0	n/a	n/a	78	12.2	14.0	76 %	100 %	100 %
Nov-25	75	1.7	0.0	2.1	0.0	n/a	n/a	80	11.8	14.0	84 %	98 %	100 %
Dec-25	108	1.4	0.0	1.9	0.0	n/a	n/a	101	10.9	12.0	95 %	98 %	99 %
Jan-26	100	1.1	0.0	2.8	0.0	n/a	n/a	94	12.1	14.0	81 %	97 %	98 %
Feb-26	90	0.8	0.0	2.4	0.0	n/a	n/a	95	11.5	13.0	92 %	99 %	100 %
Mar-26	105	1.3	0.0	2.6	1.0	n/a	n/a	102	11.4	13.0	79 %	96 %	100 %
Apr-26	86	1.1	0.0	1.8	0.0	n/a	n/a	96	11.8	14.0	88 %	95 %	100 %
May-26	93	0.7	0.0	1.7	1.0	6.0	4.0	76	11.4	13.0	88 %	97 %	99 %

Table 6 Data Notes:

¹**Data before – August 2018** is previously reported data from the legacy data systems. Data from August 2018 onward, is updated data pulled from the new BHHA - Forensic Data System and is based on the number of periods individuals waited for competency services in jail.

²**Court Orders Signed** is the number of court orders signed in the specified month for those individuals waiting for competency services in jail and any additional in-jail stays (i.e., periods of waiting for competency services in jail) starting in the specified month due to a class member entering jail from the community while awaiting a court-ordered competency service. This number does not include court orders signed for individuals waiting for competency services outside of jail.

³**"Days from order signature to"** represents the number of days from the beginning of a period of waiting in jail for competency services to the specified timeframe (i.e., hospital receipt of order, hospital receipt of discovery, end of reporting month of incomplete referrals, and completion or the end of a period of waiting in jail for competency services).

⁴**Court Orders Completed** is the number of cases completed in the month specified. Cases are completed if the client is admitted for services, the order is withdrawn or dismissed, or the client is no longer waiting for services in jail. Counts prior to August 2018 are taken from

previously reported class member populations provided with monthly court report submissions. Counts since August 2018 are from data recorded in the BHHA Forensic Data System.

⁵**From August 2018 onward**, the following data elements exclude periods of waiting for competency services in jail that have not yet ended: completion and the percent completed variables. Once the waiting period has ended, those cases will be included in the wait-time and percents.

⁶**From April 2015 April 2017**, the inpatient evaluation and restoration compliance deadline was within 7 days from court order signature date. As of May 2017, DSHS compliance data are calculated and summarized in this table based on the modified deadline for inpatient competency evaluation and restoration services outlined in the order DSHS received on 4/26/2017 adopting the Mediated Settlement Agreement, Dkt. # 389, stating: “DSHS shall complete inpatient competency evaluation and restorations within the shorter of either a) 7 days from receipt of order or b) 14 days from signature of order”.

To comply with the new requirements, this report captures two additional sets of compliance information beginning in May 2017. The first is percentage of orders completed within 7 days from receipt of order (if the order was received within 0 and 7 days from order signature date) (or 7 days from the beginning or notification of a period of waiting in jail). The second is percentage of all orders completed within either of the two compliance deadlines: 7 days from receipt of order (if the order was received within 0 and 7 days from order signature date) (or 7 days from the beginning or notification of a period of waiting in jail) or 14 days from order signature date (if the order was received after 7 days from order signature date).

Table 7. Class Member Status Eastern State Hospital - Inpatient Competency Services

MONTH	Court Orders Signed ²	Days from order signature to ³ :						Court Orders Completed ⁴	Days from order signed to completion ⁵		Percent complete within 7 days from order signature date ^{5,6}	Percent completed within 7 days from receipt of order ^{5,6}	Percent completed within 7 days from receipt of order or within 14 days from order signature date ^{5,6}
		hospital receipt of order		hospital receipt of discovery		end of reporting month for incomplete referrals							
		Average	Median	Average	Median	Average	Median		Average	Median			
May-25	8	0.0	0.0	0.4	0.0	n/a	n/a	6	4.5	4.0	67%	67%	100%
Jun-25	1	0.3	0.0	0.3	0.0	n/a	n/a	3	4.7	5.0	100%	100%	100%
Jul-25	8	0.1	0.0	0.2	0.0	n/a	n/a	8	5.1	6.0	100%	100%	100%
Aug-25	15	0.2	0.0	0.3	0.0	n/a	n/a	14	4.9	5.0	100%	100%	100%
Sep-25	11	0.5	0.0	17.3	0.5	n/a	n/a	12	4.2	3.5	83%	92%	92%
Oct-25	9	0.1	0.0	0.0	0.0	n/a	n/a	8	6.1	6.0	88%	100%	100%
Nov-25	8	0.8	0.0	20.6	0.0	n/a	n/a	7	5.6	6.0	86%	100%	100%
Dec-25	7	0.1	0.0	17.9	0.0	n/a	n/a	9	10.2	6.0	78%	78%	78%
Jan-26	11	0.8	0.0	0.2	0.0	n/a	n/a	10	4.4	5.0	90%	90%	90%
Feb-26	4	0.0	0.0	3.3	1.0	n/a	n/a	3	3.7	4.0	100%	100%	100%
Mar-26	10	0.2	0.0	0.7	0.5	n/a	n/a	9	3.8	4.0	100%	100%	100%
Apr-26	9	2.5	0.0	2.8	0.0	n/a	n/a	10	4.2	3.5	90%	100%	100%
May-26	8	3.3	0.0	3.4	0.0	n/a	n/a	8	7.5	3.5	75%	88%	88%

Table 7 Data Notes:

¹**Data before – August 2018** is previously reported data from the legacy data systems. Data from August 2018 onward, is updated data pulled from the new BHHA - Forensic Data System and is based on the number of periods individuals waited for competency services in jail.

²**Court Orders Signed** is the number of court orders signed in the specified month for those individuals waiting for competency services in jail and any additional in-jail stays (i.e., periods of waiting for competency services in jail) starting in the specified month due to a class member entering jail from the community while awaiting a court-ordered competency service. This number does not include court orders signed for individuals waiting for competency services outside of jail.

³**"Days from order signature to"** represents the number of days from the beginning of a period of waiting in jail for competency services to the specified timeframe (i.e., hospital receipt of order, hospital receipt of discovery, end of reporting month of incomplete referrals, and completion or the end of a period of waiting in jail for competency services).

⁴**Court Orders Completed** is the number of cases completed in the month specified. Cases are completed if the client is admitted for services, the order is withdrawn or dismissed, or the client is no longer waiting for services in jail. Counts prior to August 2018 are taken from previously reported class member populations provided with monthly court report submissions. Counts since August 2018 are from data recorded in the BHHA Forensic Data System.

⁵**From August 2018 onward**, the following data elements exclude periods of waiting for competency services in jail that have not yet ended: completion and the percent completed variables. Once the waiting period has ended, those cases will be included in the wait-time and percents.

⁶**From April 2015 April 2017**, the inpatient evaluation and restoration compliance deadline was within 7 days from court order signature date. As of May 2017, DSHS compliance data are calculated and summarized in this table based on the modified deadline for inpatient competency evaluation and restoration services outlined in the order DSHS received on 4/26/2017 adopting the Mediated Settlement Agreement, Dkt. # 389, stating: “DSHS shall complete inpatient competency evaluation and restorations within the shorter of either a) 7 days from receipt of order or b) 14 days from signature of order”.

To comply with the new requirements, this report captures two additional sets of compliance information beginning in May 2017. The first is percentage of orders completed within 7 days from receipt of order (if the order was received within 0 and 7 days from order signature date) (or 7 days from the beginning or notification of a period of waiting in jail). The second is percentage of all orders completed within either of the two compliance deadlines: 7 days from receipt of order (if the order was received within 0 and 7 days from order signature date) (or 7 days from the beginning or notification of a period of waiting in jail) or 14 days from order signature date (if the order was received after 7 days from order signature date).

Table 8. Class Member Status Eastern State Hospital - Inpatient Competency Restoration Services

MONTH	Court Orders Signed ²	Days from order signature to ³ :						Court Orders Completed ⁴	Days from order signed to completion ⁵		Percent complete within 7 days from order signature date ^{5,6}	Percent completed within 7 days from receipt of order ^{5,6}	Percent completed within 7 days from receipt of order or within 14 days from order signature date ^{5,6}
		hospital receipt of order		hospital receipt of discovery		end of reporting month for incomplete referrals							
		Average	Median	Average	Median	Average	Median		Average	Median			
May-25	30	0.2	0.0	0.0	0.0	n/a	n/a	36	4.6	4.0	86 %	86 %	86 %
Jun-25	54	0.5	0.0	0.1	0.0	n/a	n/a	43	5.1	6.0	77 %	91 %	100 %
Jul-25	46	1.0	0.0	0.0	0.0	n/a	n/a	53	5.1	6.0	96 %	100 %	100 %
Aug-25	40	1.2	0.0	0.0	0.0	n/a	n/a	43	6.3	6.0	91 %	93 %	95 %
Sep-25	44	0.6	0.0	0.3	0.0	n/a	n/a	41	5.2	6.0	93 %	95 %	100 %
Oct-25	28	0.3	0.0	0.4	0.0	n/a	n/a	31	4.1	4.0	97 %	97 %	100 %
Nov-25	24	0.6	0.0	0.0	0.0	n/a	n/a	24	4.8	5.0	96 %	96 %	100 %
Dec-25	37	0.3	0.0	0.0	0.0	n/a	n/a	35	5.2	6.0	91 %	100 %	100 %
Jan-26	39	1.3	0.0	0.0	0.0	n/a	n/a	40	6.0	6.0	80 %	93 %	93 %
Feb-26	20	1.5	0.0	0.0	0.0	n/a	n/a	25	4.8	4.0	88 %	88 %	96 %
Mar-26	35	0.7	0.0	0.1	0.0	n/a	n/a	30	5.0	5.0	87 %	90 %	100 %
Apr-26	34	0.7	0.0	0.1	0.0	n/a	n/a	36	4.3	3.0	83 %	86 %	94 %
May-26	27	0.7	0.0	0.1	0.0	3.0	3.0	26	3.8	3.5	92 %	96 %	100 %

Table 8 Data Notes:

¹**Data before - August 2018** is previously reported data from the legacy data systems. Data from August 2018 onward, is updated data pulled from the new BHHA - Forensic Data System and is based on the number of periods individuals waited for competency services in jail.

²**Court Orders Signed** is the number of court orders signed in the specified month for those individuals waiting for competency services in jail and any additional in-jail stays (i.e., periods of waiting for competency services in jail) starting in the specified month due to a class member entering jail from the community while awaiting a court-ordered competency service. This number does not include court orders signed for individuals waiting for competency services outside of jail.

³**"Days from order signature to"** represents the number of days from the beginning of a period of waiting in jail for competency services to the specified timeframe (i.e., hospital receipt of order, hospital receipt of discovery, end of reporting month of incomplete referrals, and completion or the end of a period of waiting in jail for competency services).

⁴**Court Orders Completed** is the number of cases completed in the month specified. Cases are completed if the client is admitted for services, the order is withdrawn or dismissed, or the client is no longer waiting for services in jail. Counts prior to August 2018 are taken from previously reported class member populations provided with monthly court report submissions. Counts since August 2018 are from data recorded in the BHHA Forensic Data System.

⁵**From August 2018 onward**, the following data elements exclude periods of waiting for competency services in jail that have not yet ended: completion and the percent completed variables. Once the waiting period has ended, those cases will be included in the wait-time and percents.

⁶**From April 2015 April 2017**, the inpatient evaluation and restoration compliance deadline was within 7 days from court order signature date. As of May 2017, DSHS compliance data are calculated and summarized in this table based on the modified deadline for inpatient competency evaluation and restoration services outlined in the order DSHS received on 4/26/2017 adopting the Mediated Settlement Agreement, Dkt. # 389, stating: "DSHS shall complete inpatient competency evaluation and restorations within the shorter of either a) 7 days from receipt of order or b) 14 days from signature of order".

To comply with the new requirements, this report captures two additional sets of compliance information beginning in May 2017. The first is percentage of orders completed within 7 days from receipt of order (if the order was received within 0 and 7 days from order signature date) (or 7 days from the beginning or notification of a period of waiting in jail). The second is percentage of all orders completed within either of the two compliance deadlines: 7 days from receipt of order (if the order was received within 0 and 7 days from order signature date) (or 7 days from the beginning or notification of a period of waiting in jail) or 14 days from order signature date (if the order was received after 7 days from order signature date).

Table 9. Class Member Status at WSH and ESH (Totals) - Jail-based Competency Evaluations

MONTH	Court Orders Signed ²	Days from order signature to ³ :						Court Orders Completed ⁴	Days from order signed to completion ⁵		within 14 days from order signature date ^{5,6}	within 14 days from receipt of order ^{5,6}	within 14 days from receipt of order or 21 days from order signature date ^{5,6}
		hospital receipt of order		hospital receipt of discovery		end of reporting month for incomplete referrals							
		Average	Median	Average	Median	Average	Median		Average	Median			
May-25	550	0.5	0.0	0.8	0.0	n/a	n/a	531	11.7	12.0	86 %	90 %	92 %
Jun-25	572	0.3	0.0	0.7	0.0	n/a	n/a	568	11.7	13.0	88 %	93 %	95 %
Jul-25	658	0.5	0.0	0.7	0.0	n/a	n/a	646	11.7	13.0	84 %	91 %	91 %
Aug-25	588	0.4	0.0	0.7	0.0	n/a	n/a	587	11.9	13.0	87 %	93 %	94 %
Sep-25	600	0.4	0.0	0.7	0.0	n/a	n/a	593	12.1	13.0	84 %	90 %	91 %
Oct-25	600	0.4	0.0	0.7	0.0	n/a	n/a	615	11.8	13.0	84 %	91 %	92 %
Nov-25	480	0.6	0.0	1.0	0.0	n/a	n/a	508	11.9	13.0	90 %	94 %	94 %
Dec-25	583	0.5	0.0	0.9	0.0	n/a	n/a	585	12.2	13.0	86 %	89 %	90 %
Jan-26	565	0.5	0.0	1.0	0.0	n/a	n/a	546	12.2	14.0	79 %	88 %	89 %
Feb-26	504	0.4	0.0	0.9	0.0	n/a	n/a	526	11.9	13.0	86 %	93 %	94 %
Mar-26	572	0.5	0.0	1.1	0.0	n/a	n/a	580	11.6	13.0	88 %	95 %	96 %
Apr-26	566	0.4	0.0	0.8	0.0	n/a	n/a	549	11.4	13.0	89 %	95 %	96 %
May-26	573	0.3	0.0	0.7	0.0	6.2	5.0	532	11.7	12.0	90 %	94 %	94 %

Table 9 Data Notes:

¹**Data before - August 2018** is previously reported data from the legacy data systems. Data from August 2018 onward, is updated data pulled from the new BHHA - Forensic Data System and is based on the number of periods individuals waited for competency services in jail.

²**Court Orders Signed** is the number of court orders signed in the specified month for those individuals waiting for competency services in jail and any additional in-jail stays (i.e., periods of waiting for competency services in jail) starting in the specified month due to a class member entering jail from the community while awaiting a court-ordered competency service. This number does not include court orders signed for individuals waiting for competency services outside of jail.

³**"Days from order signature to"** represents the number of days from the beginning of a period of waiting in jail for competency services to the specified timeframe (i.e., hospital receipt of order, hospital receipt of discovery, end of reporting month of incomplete referrals, and completion or the end of a period of waiting in jail for competency services).

⁴**Court Orders Completed** is the number of cases completed in the month specified. Cases are completed if the client is admitted for services, the order is withdrawn or dismissed, or the client is no longer waiting for services in jail. Counts prior to August 2018 are taken from previously reported class member populations provided with monthly court report submissions. Counts since August 2018 are from data recorded in the BHHA Forensic Data System.

⁵**From August 2018 onward**, the following data elements exclude periods of waiting for competency services in jail that have not yet ended: completion and the percent completed variables. Once the waiting period has ended, those cases will be included in the wait-time and percents.

⁶**From April 2015 April 2017**, the inpatient evaluation and restoration compliance deadline was within 7 days from court order signature date. As of May 2017, DSHS compliance data are calculated and summarized in this table based on the modified deadline for inpatient competency evaluation and restoration services outlined in the order DSHS received on 4/26/2017 adopting the Mediated Settlement Agreement, Dkt. # 389, stating: “DSHS shall complete inpatient competency evaluation and restorations within the shorter of either a) 7 days from receipt of order or b) 14 days from signature of order”.

To comply with the new requirements, this report captures two additional sets of compliance information beginning in May 2017. The first is percentage of orders completed within 7 days from receipt of order (if the order was received within 0 and 7 days from order signature date) (or 7 days from the beginning or notification of a period of waiting in jail). The second is percentage of all orders completed within either of the two compliance deadlines: 7 days from receipt of order (if the order was received within 0 and 7 days from order signature date) (or 7 days from the beginning or notification of a period of waiting in jail) or 14 days from order signature date (if the order was received after 7 days from order signature date).

Table 10. Class Member Status at WSH and ESH (Totals) - Inpatient Competency Evaluation

MONTH	Court Orders Signed ²	Days from order signature to ³ :						Court Orders Completed ⁴	Days from order signed to completion ⁵		Percent complete within 7 days from order signature date ^{5,6}	Percent completed within 7 days from receipt of order ^{5,6}	Percent completed within 7 days from receipt of order or within 14 days from order signature date ^{5,6}
		hospital receipt of order		hospital receipt of discovery		end of reporting month for incomplete referrals							
		Average	Median	Average	Median	Average	Median		Average	Median			
May-25	20	0.0	0.0	0.2	0.0	n/a	n/a	24	4.1	3.5	88 %	88 %	96 %
Jun-25	22	0.5	0.0	0.0	0.0	n/a	n/a	23	5.0	5.0	96 %	100 %	100 %
Jul-25	31	0.5	0.0	0.3	0.0	n/a	n/a	31	4.6	5.0	97 %	100 %	100 %
Aug-25	34	0.2	0.0	0.1	0.0	n/a	n/a	34	4.2	4.0	100 %	100 %	100 %
Sep-25	31	0.3	0.0	6.5	0.0	n/a	n/a	30	4.0	3.5	93 %	97 %	97 %
Oct-25	24	0.7	0.0	0.2	0.0	n/a	n/a	23	4.7	5.0	96 %	100 %	100 %
Nov-25	26	1.8	0.0	6.5	0.0	n/a	n/a	21	6.1	5.0	86 %	90 %	90 %
Dec-25	27	0.5	0.0	5.4	0.0	n/a	n/a	34	6.9	5.0	88 %	88 %	91 %
Jan-26	35	0.4	0.0	0.3	0.0	n/a	n/a	27	4.4	5.0	96 %	96 %	96 %
Feb-26	31	0.5	0.0	0.5	0.0	n/a	n/a	30	4.2	4.0	90 %	97 %	93 %
Mar-26	43	0.2	0.0	0.3	0.0	n/a	n/a	40	4.5	4.0	93 %	95 %	95 %
Apr-26	30	0.9	0.0	1.0	0.0	n/a	n/a	37	4.4	4.0	95 %	97 %	97 %
May-26	44	1.1	0.0	1.0	0.0	4.1	2.0	38	5.4	4.0	84 %	92 %	92 %

Table 10 Data Notes:

¹**Data before - August 2018** is previously reported data from the legacy data systems. Data from August 2018 onward, is updated data pulled from the new BHHA - Forensic Data System and is based on the number of periods individuals waited for competency services in jail.

²**Court Orders Signed** is the number of court orders signed in the specified month for those individuals waiting for competency services in jail and any additional in-jail stays (i.e., periods of waiting for competency services in jail) starting in the specified month due to a class member entering jail from the community while awaiting a court-ordered competency service. This number does not include court orders signed for individuals waiting for competency services outside of jail.

³**"Days from order signature to"** represents the number of days from the beginning of a period of waiting in jail for competency services to the specified timeframe (i.e., hospital receipt of order, hospital receipt of discovery, end of reporting month of incomplete referrals, and completion or the end of a period of waiting in jail for competency services).

⁴**Court Orders Completed** is the number of cases completed in the month specified. Cases are completed if the client is admitted for services, the order is withdrawn or dismissed, or the client is no longer waiting for services in jail. Counts prior to August 2018 are taken from previously reported class member populations provided with monthly court report submissions. Counts since August 2018 are from data recorded in the BHHA Forensic Data System.

⁵**From August 2018 onward**, the following data elements exclude periods of waiting for competency services in jail that have not yet ended: completion and the percent completed variables. Once the waiting period has ended, those cases will be included in the wait-time and percents.

⁶**From April 2015 April 2017**, the inpatient evaluation and restoration compliance deadline was within 7 days from court order signature date. As of May 2017, DSHS compliance data are calculated and summarized in this table based on the modified deadline for inpatient competency evaluation and restoration services outlined in the order DSHS received on 4/26/2017 adopting the Mediated Settlement Agreement, Dkt. # 389, stating: “DSHS shall complete inpatient competency evaluation and restorations within the shorter of either a) 7 days from receipt of order or b) 14 days from signature of order”.

To comply with the new requirements, this report captures two additional sets of compliance information beginning in May 2017. The first is percentage of orders completed within 7 days from receipt of order (if the order was received within 0 and 7 days from order signature date) (or 7 days from the beginning or notification of a period of waiting in jail). The second is percentage of all orders completed within either of the two compliance deadlines: 7 days from receipt of order (if the order was received within 0 and 7 days from order signature date) (or 7 days from the beginning or notification of a period of waiting in jail) or 14 days from order signature date (if the order was received after 7 days from order signature date).

Table 11. Class Member Status at WSH, ESH, and BHTCs (Totals) - Inpatient Competency Restoration Services

MONTH	Court Orders Signed ²	Days from order signature to ³ :						Court Orders Completed ⁴	Days from order signed to completion ⁵		Percent complete within 7 days from order signature date ^{5,6}	Percent completed within 7 days from receipt of order ^{5,6}	Percent completed within 7 days from receipt of order or within 14 days from order signature date ^{5,6}
		hospital receipt of order		hospital receipt of discovery		end of reporting month for incomplete referrals							
		Average	Median	Average	Median	Average	Median		Average	Median			
May-25	178	0.9	0.0	0.1	0.0	n/a	n/a	177	4.9	5.0	93 %	94 %	97 %
Jun-25	175	0.8	0.0	0.1	0.0	n/a	n/a	172	4.8	5.0	90 %	94 %	99 %
Jul-25	213	0.8	0.0	0.0	0.0	n/a	n/a	196	4.8	5.0	92 %	94 %	97 %
Aug-25	162	0.7	0.0	0.0	0.0	n/a	n/a	182	5.4	5.0	93 %	95 %	98 %
Sep-25	185	0.4	0.0	0.1	0.0	n/a	n/a	177	4.6	5.0	94 %	95 %	100 %
Oct-25	187	0.3	0.0	0.1	0.0	n/a	n/a	187	4.4	4.0	97 %	98 %	99 %
Nov-25	157	0.8	0.0	0.0	0.0	n/a	n/a	158	5.2	5.5	98 %	99 %	100 %
Dec-25	181	1.1	0.0	0.0	0.0	n/a	n/a	174	5.1	5.0	91 %	95 %	98 %
Jan-26	157	1.3	0.0	0.0	0.0	n/a	n/a	160	5.5	5.0	90 %	94 %	96 %
Feb-26	160	1.2	0.0	0.1	0.0	n/a	n/a	165	5.5	5.0	93 %	94 %	97 %
Mar-26	180	0.7	0.0	0.1	0.0	n/a	n/a	181	5.0	5.0	91 %	93 %	98 %
Apr-26	154	0.5	0.0	0.0	0.0	n/a	n/a	155	4.3	4.0	93 %	95 %	98 %
May-26	147	0.4	0.0	0.0	0.0	2.5	2.5	144	4.7	5.0	95 %	99 %	100 %

Table 11 Data Notes:

¹**Data before - August 2018** is previously reported data from the legacy data systems. Data from August 2018 onward, is updated data pulled from the new BHHA - Forensic Data System and is based on the number of periods individuals waited for competency services in jail.

²**Court Orders Signed** is the number of court orders signed in the specified month for those individuals waiting for competency services in jail and any additional in-jail stays (i.e., periods of waiting for competency services in jail) starting in the specified month due to a class member entering jail from the community while awaiting a court-ordered competency service. This number does not include court orders signed for individuals waiting for competency services outside of jail.

³**"Days from order signature to"** represents the number of days from the beginning of a period of waiting in jail for competency services to the specified timeframe (i.e., hospital receipt of order, hospital receipt of discovery, end of reporting month of incomplete referrals, and completion or the end of a period of waiting in jail for competency services).

⁴**Court Orders Completed** is the number of cases completed in the month specified. Cases are completed if the client is admitted for services, the order is withdrawn or dismissed, or the client is no longer waiting for services in jail. Counts prior to August 2018 are taken from previously reported class member populations provided with monthly court report submissions. Counts since August 2018 are from data recorded in the BHHA Forensic Data System.

⁵**From August 2018 onward**, the following data elements exclude periods of waiting for competency services in jail that have not yet ended: completion and the percent completed variables. Once the waiting period has ended, those cases will be included in the wait-time and percents.

⁶**From April 2015 April 2017**, the inpatient evaluation and restoration compliance deadline was within 7 days from court order signature date. As of May 2017, DSHS compliance data are calculated and summarized in this table based on the modified deadline for inpatient competency evaluation and restoration services outlined in the order DSHS received on 4/26/2017 adopting the Mediated Settlement Agreement, Dkt. # 389, stating: “DSHS shall complete inpatient competency evaluation and restorations within the shorter of either a) 7 days from receipt of order or b) 14 days from signature of order”.

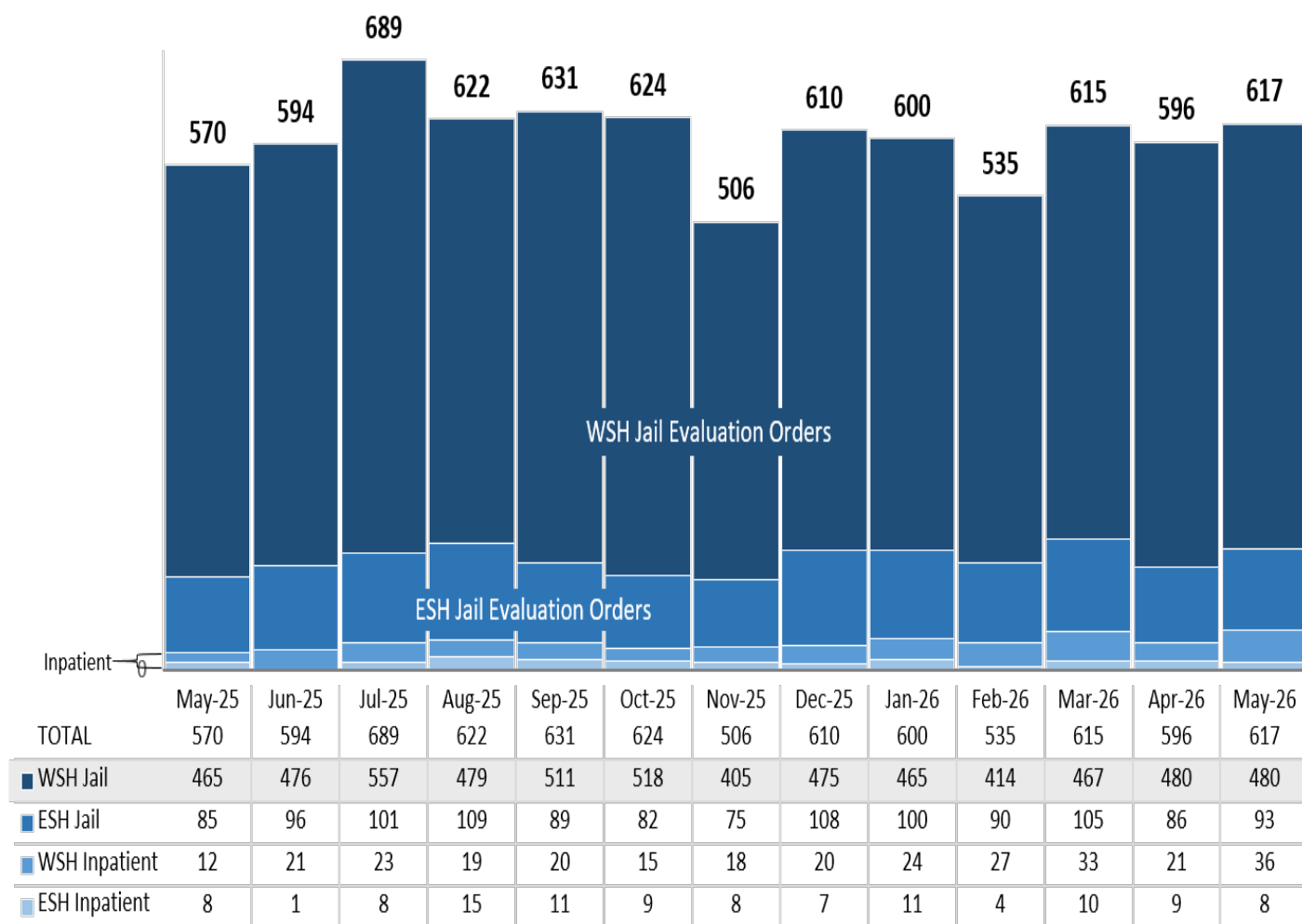
To comply with the new requirements, this report captures two additional sets of compliance information beginning in May 2017. The first is percentage of orders completed within 7 days from receipt of order (if the order was received within 0 and 7 days from order signature date) (or 7 days from the beginning or notification of a period of waiting in jail). The second is percentage of all orders completed within either of the two compliance deadlines: 7 days from receipt of order (if the order was received within 0 and 7 days from order signature date) (or 7 days from the beginning or notification of a period of waiting in jail) or 14 days from order signature date (if the order was received after 7 days from order signature date).

Class Member Status Data Graphs

Data Graphs: Figures 1 through 6

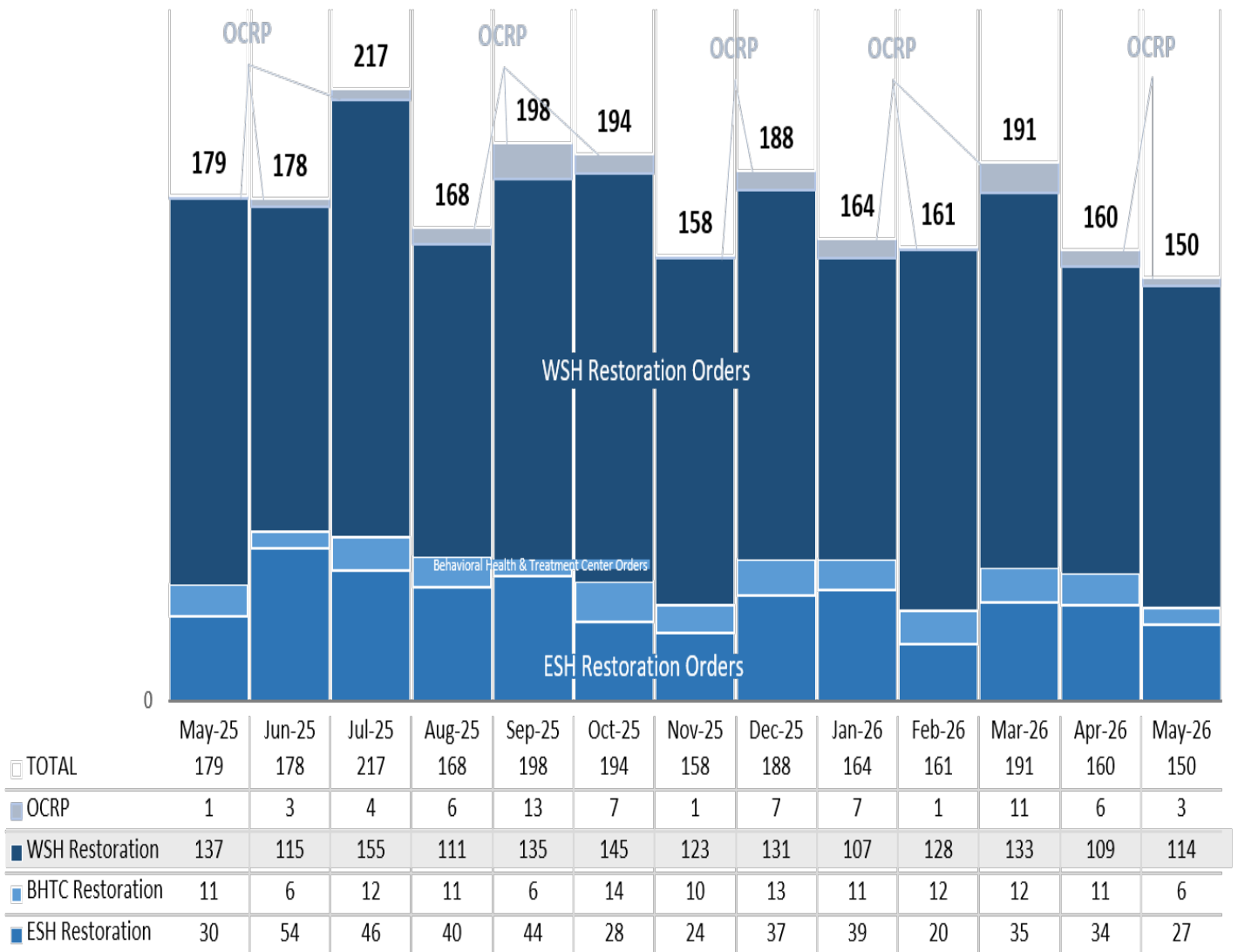
The following figures, Figures 1-6, present “first look” May 2026 data. The data are subject to change as they mature over a longer time horizon.

Figure 1. Signed Evaluation Orders for Trueblood Class Members



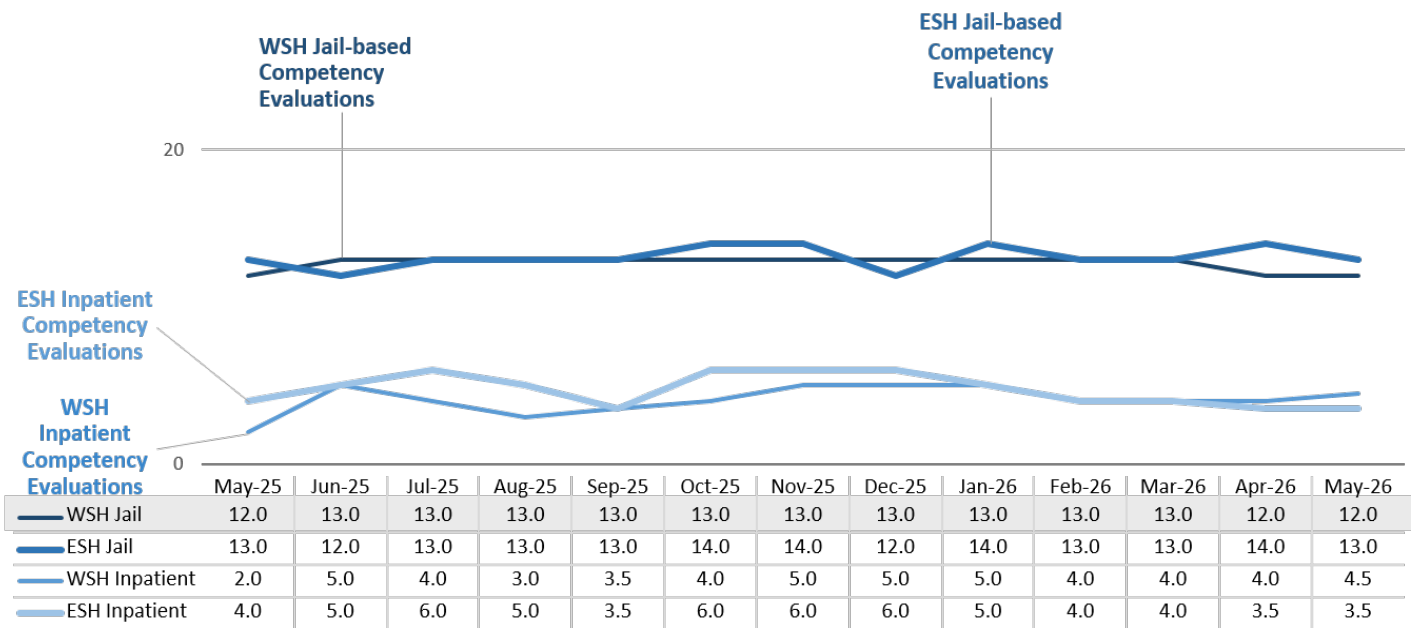
SOURCE: DSHS Facilities, Finance, and Analytics Administration, Research and Data Analysis Division, Forensic Data System , June 2026.

Figure 2. Signed Restoration Orders for Trueblood Class Members



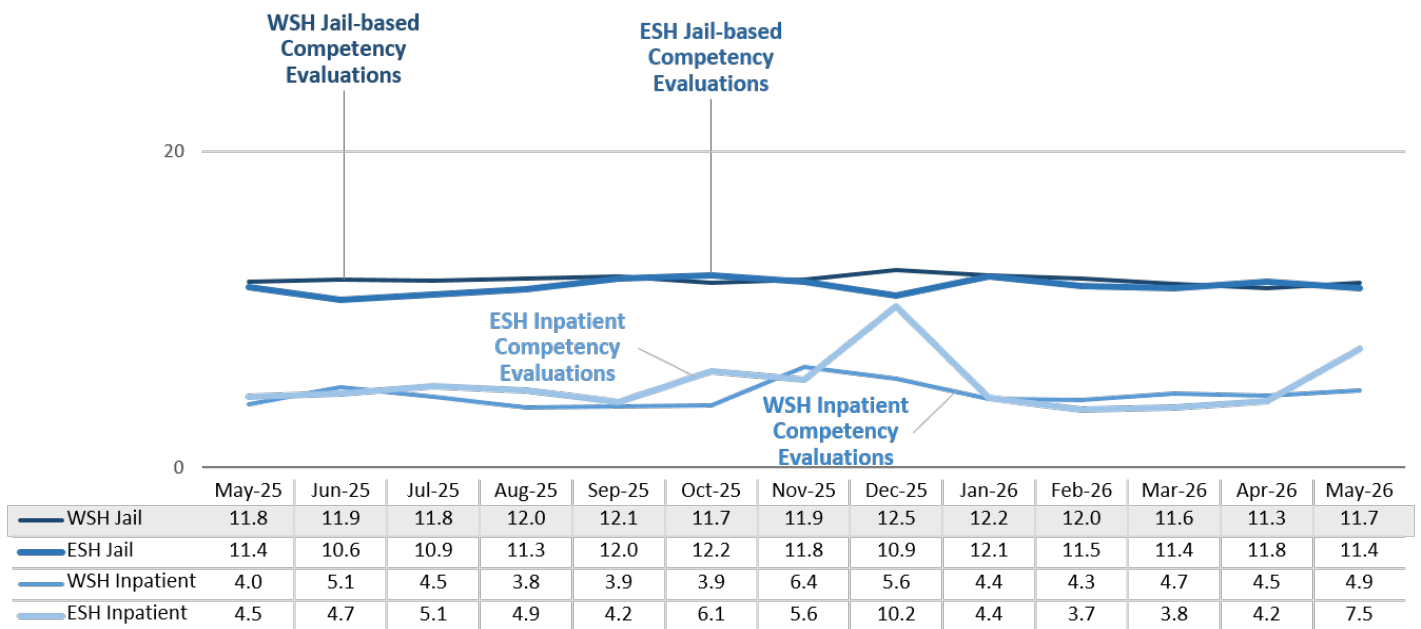
SOURCE: DSHS Facilities, Finance, and Analytics Administration, Research and Data Analysis Division, Forensic Data System, June 2026.

Figure 3. Median Days from Court Order Signature to Completed Evaluation



SOURCE: DSHS Facilities, Finance, and Analytics Administration, Research and Data Analysis Division, Forensic Data System , June 2026.

Figure 4. Average Days from Court Order Signature to Completed Evaluation



SOURCE: DSHS Facilities, Finance, and Analytics Administration, Research and Data Analysis Division, Forensic Data System , June 2026.

Figure 5. Median Days from Court Order Signature to Completed Restoration

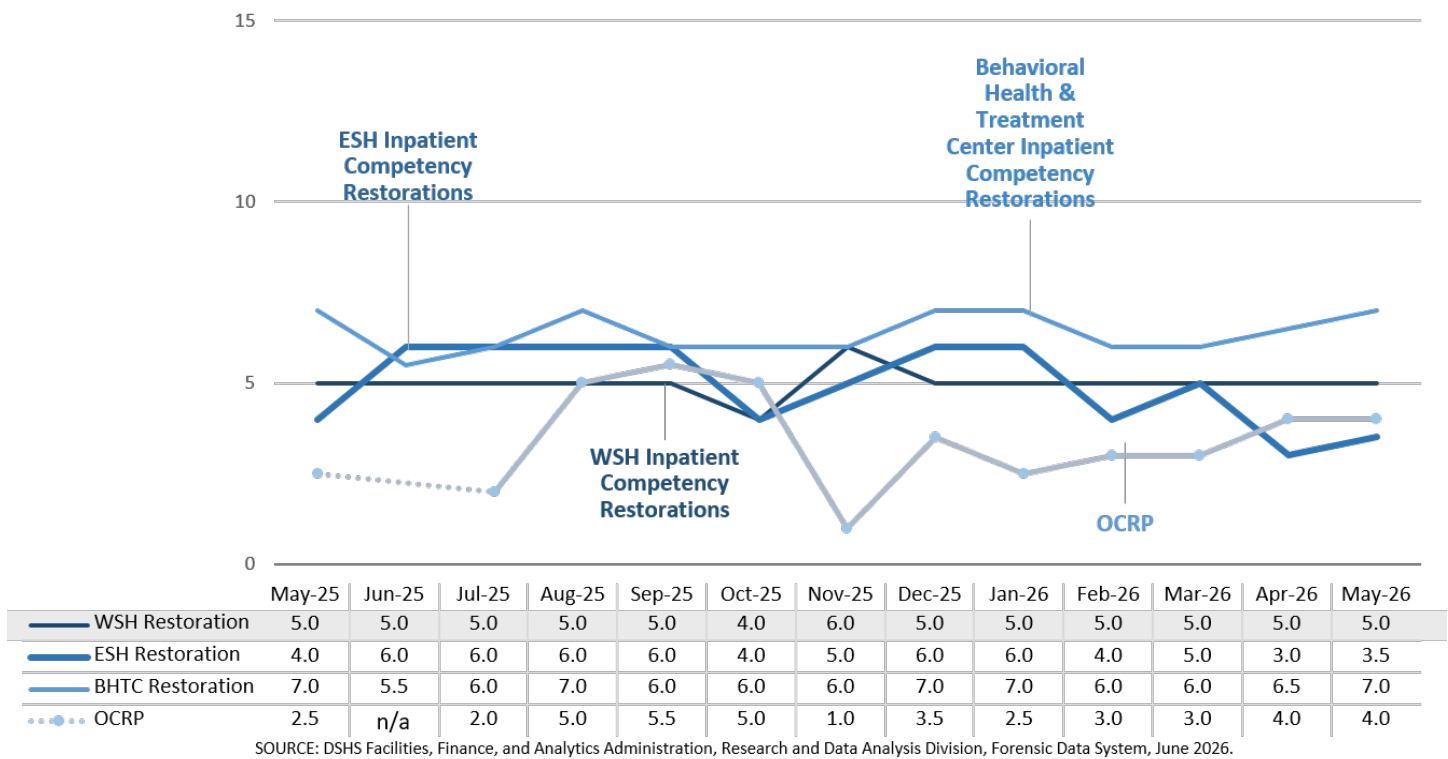
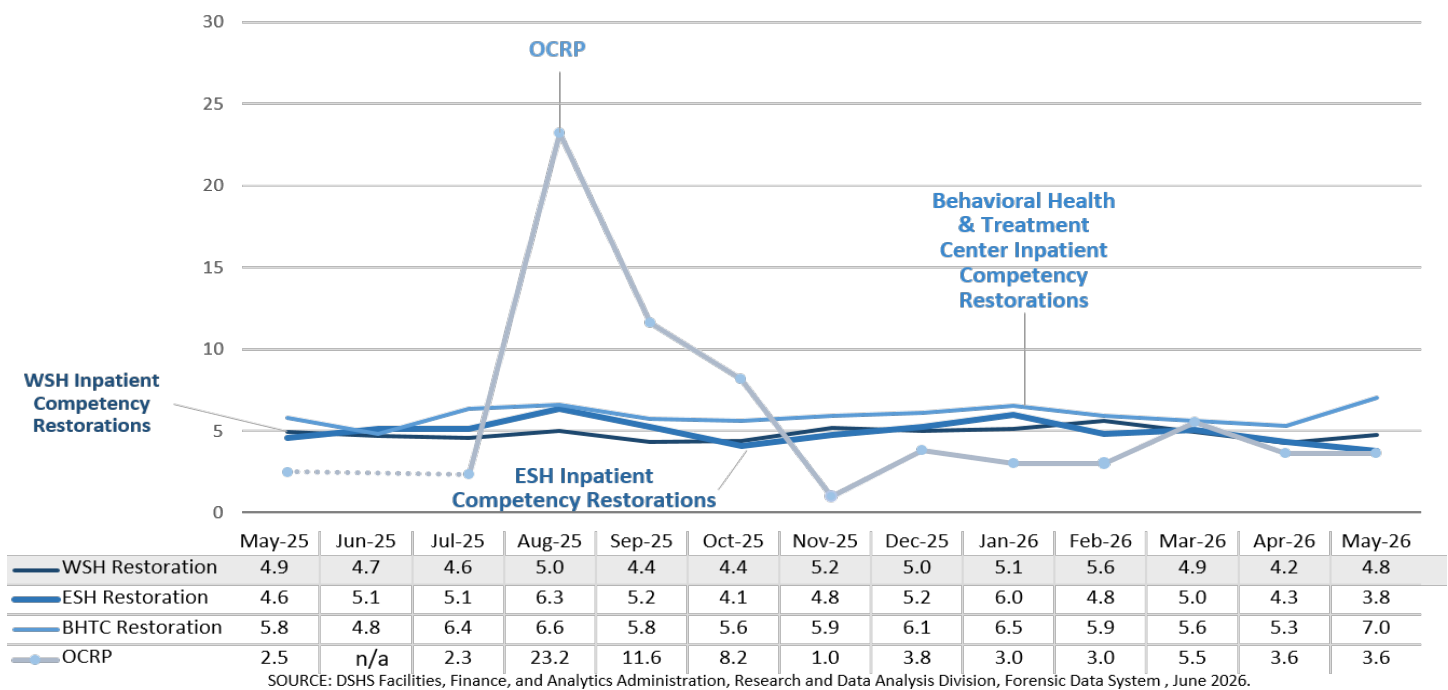


Figure 6. Average Days from Court Order Signature to Completed Restoration



Tables 12-15: Summary of Jail Evaluations, Inpatient Evaluations, and Restorations by Month

Data Tables 12 through 15

The data presented in this section, from Tables 12-15 (percent of orders completed), are based on the month that the court order was signed and will therefore be different from the data shown previously in Tables 3-11, which are based on the month the order packet was completed. May 2026 numbers are first look, and percentages may change as many cases (those with orders at the end of the month) will close within the seven or fourteen day timely completion period. A rolling 13 months is displayed in Tables 12-15. Tables 12-14 are presented in this first subsection followed by Table 15 in the subsequent subsection.

Table 12. Total Completed Jail Evaluation Orders by Month Court Order Signed

MONTH	<i>Court Orders Signed</i> ²	14 DAYS OR LESS FROM ORDER SIGNATURE DATE ³	PERCENT 14 DAYS OR LESS FROM ORDER SIGNATURE DATE ³	ORDERS COMPLETED WITHIN 14 DAYS FROM RECEIPT OF ORDER ^{3,4}	PERCENT COMPLETED WITHIN 14 DAYS FROM RECEIPT OF ORDER ^{3,4}	ORDERS COMPLETED WITHIN 14 DAYS FROM RECEIPT OF ORDER OR WITHIN 21 DAYS FROM ORDER SIGNATURE DATE ^{3,4}	PERCENT COMPLETED WITHIN 14 DAYS FROM RECEIPT OF ORDER OR WITHIN 21 DAYS FROM ORDER SIGNATURE DATE ^{3,4}
May-25	550	484	88 %	504	92 %	516	94 %
Jun-25	572	493	86 %	525	92 %	528	92 %
Jul-25	658	558	85 %	602	91 %	607	92 %
Aug-25	588	498	85 %	533	91 %	541	92 %
Sep-25	600	512	85 %	544	91 %	548	91 %
Oct-25	600	531	89 %	565	94 %	567	95 %
Nov-25	480	401	84 %	420	88 %	427	89 %
Dec-25	583	500	86 %	527	90 %	529	91 %
Jan-26	565	469	83 %	521	92 %	522	92 %
Feb-26	504	446	88 %	479	95 %	483	96 %
Mar-26	572	495	87 %	538	94 %	544	95 %
Apr-26	566	515	91 %	538	95 %	540	95 %
May-26	573	364	64 %	376	66 %	376	66 %

Table 12 Data Notes:

¹**Data before - August 2018** is previously reported data from the legacy data systems. Data from August 2018 onward, is updated data pulled from the new BHHA - Forensic Data System and is based on the number of periods individuals waited for competency services in jail.

²**Court Orders Signed** is the number of court orders signed in the specified month for those individuals waiting for competency services in jail and any additional in-jail stays (i.e., periods of waiting for competency services in jail) starting in the specified month due to a class member entering jail from the community while awaiting a court-ordered competency service. This

number does not include court orders signed for individuals waiting for competency services outside of jail.

³**From August 2018 onward**, the following data elements exclude periods of waiting for competency services in jail that have not yet ended: completion and the percent completed variables. Once the waiting period has ended, those cases will be included in the wait-time and percents.

⁴**From April 2015 to April 2017**, the inpatient evaluation and restoration compliance deadline was within 7 days from court order signature date. As of May 2017, DSHS compliance data are calculated and summarized in this table based on the modified deadline for inpatient competency evaluation and restoration services outlined in the order DSHS received on 4/26/2017 adopting the Mediated Settlement Agreement, Dkt. # 389, stating: “DSHS shall complete inpatient competency evaluation and restorations within the shorter of either a) 7 days from receipt of order or b) 14 days from signature of order”.

To comply with the new requirements, this report captures two additional sets of compliance information beginning in May 2017. The first is percentage of orders completed within 7 days from receipt of order (if the order was received within 0 and 7 days from order signature date) (or 7 days from the beginning or notification of a period of waiting in jail). The second is percentage of all orders completed within either of the two compliance deadlines: 7 days from receipt of order (if the order was received within 0 and 7 days from order signature date) (or 7 days from the beginning or notification of a period of waiting in jail) or 14 days from order signature date (if the order was received after 7 days from order signature date).

Table 13. Total Completed Inpatient Evaluation Orders by Month Court Order Signed

MONTH	<i>Court Orders Signed</i> ¹	7 DAYS OR LESS FROM ORDER SIGNATURE DATE	PERCENT 7 DAYS OR LESS FROM ORDER SIGNATURE DATE	ORDERS COMPLETED WITHIN 7 DAYS FROM RECEIPT OF ORDER ^{1,2}	PERCENT COMPLETED WITHIN 7 DAYS FROM RECEIPT OF ORDER ^{1,2}	ORDERS COMPLETED WITHIN 7 DAYS FROM RECEIPT OF ORDER OR WITHIN 14 DAYS FROM ORDER SIGNATURE DATE ^{1,2}	PERCENT COMPLETED WITHIN 7 DAYS FROM RECEIPT OF ORDER OR WITHIN 14 DAYS FROM ORDER SIGNATURE DATE ^{1,2}
May-25	20	17	85 %	17	85 %	19	95 %
Jun-25	22	20	91 %	22	100 %	22	100 %
Jul-25	31	31	100 %	31	100 %	31	100 %
Aug-25	34	33	97 %	33	97 %	33	97 %
Sep-25	31	30	97 %	31	100 %	31	100 %
Oct-25	24	22	92 %	23	96 %	23	96 %
Nov-25	26	20	77 %	21	81 %	22	85 %
Dec-25	27	27	100 %	27	100 %	27	100 %
Jan-26	35	34	97 %	34	97 %	34	97 %
Feb-26	31	25	81 %	28	90 %	27	87 %
Mar-26	43	42	98 %	42	98 %	42	98 %
Apr-26	30	27	90 %	29	97 %	29	97 %
May-26	44	33	75 %	35	80 %	35	80 %

Table 13 Data Notes:

¹**Data before - August 2018** is previously reported data from the legacy data systems. Data from August 2018 onward, is updated data pulled from the new BHHA - Forensic Data System and is based on the number of periods individuals waited for competency services in jail.

²**Court Orders Signed** is the number of court orders signed in the specified month for those individuals waiting for competency services in jail and any additional in-jail stays (i.e., periods of waiting for competency services in jail) starting in the specified month due to a class member entering jail from the community while awaiting a court-ordered competency service. This number does not include court orders signed for individuals waiting for competency services outside of jail.

³**From August 2018 onward**, the following data elements exclude periods of waiting for competency services in jail that have not yet ended: completion and the percent completed variables. Once the waiting period has ended, those cases will be included in the wait-time and percents.

⁴**From April 2015 to April 2017**, the inpatient evaluation and restoration compliance deadline was within 7 days from court order signature date. As of May 2017, DSHS compliance data are calculated and summarized in this table based on the modified deadline for inpatient competency evaluation and restoration services outlined in the order DSHS received on 4/26/2017 adopting the Mediated Settlement Agreement, Dkt. # 389, stating: "DSHS shall

complete inpatient competency evaluation and restorations within the shorter of either a) 7 days from receipt of order or b) 14 days from signature of order”.

To comply with the new requirements, this report captures two additional sets of compliance information beginning in May 2017. The first is percentage of orders completed within 7 days from receipt of order (if the order was received within 0 and 7 days from order signature date) (or 7 days from the beginning or notification of a period of waiting in jail). The second is percentage of all orders completed within either of the two compliance deadlines: 7 days from receipt of order (if the order was received within 0 and 7 days from order signature date) (or 7 days from the beginning or notification of a period of waiting in jail) or 14 days from order signature date (if the order was received after 7 days from order signature date).

Table 14. Total Completed Restoration Orders by Month Court Order Signed

MONTH	<i>Court Orders Signed</i> ¹	7 DAYS OR LESS FROM ORDER SIGNATURE DATE	PERCENT 7 DAYS OR LESS FROM ORDER SIGNATURE DATE	ORDERS COMPLETED WITHIN 7 DAYS FROM RECEIPT OF ORDER ^{1,2}	PERCENT COMPLETED WITHIN 7 DAYS FROM RECEIPT OF ORDER ^{1,2}	ORDERS COMPLETED WITHIN 7 DAYS FROM RECEIPT OF ORDER OR WITHIN 14 DAYS FROM ORDER SIGNATURE DATE ^{1,2}	PERCENT COMPLETED WITHIN 7 DAYS FROM RECEIPT OF ORDER OR WITHIN 14 DAYS FROM ORDER SIGNATURE DATE ^{1,2}
May-25	178	169	95 %	173	97 %	178	100 %
Jun-25	175	154	88 %	163	93 %	171	98 %
Jul-25	213	200	94 %	202	95 %	207	97 %
Aug-25	162	153	94 %	155	96 %	162	100 %
Sep-25	185	173	94 %	175	95 %	184	99 %
Oct-25	187	182	97 %	185	99 %	187	100 %
Nov-25	157	148	94 %	152	97 %	154	98 %
Dec-25	181	165	91 %	171	94 %	177	98 %
Jan-26	157	147	94 %	150	96 %	152	97 %
Feb-26	160	150	94 %	152	95 %	157	98 %
Mar-26	180	160	89 %	165	92 %	176	98 %
Apr-26	154	146	95 %	150	97 %	153	99 %
May-26	147	133	90 %	135	92 %	139	95 %

Table 14 Data Notes:

¹**Data before - August 2018** is previously reported data from the legacy data systems. Data from August 2018 onward, is updated data pulled from the new BHHA - Forensic Data System and is based on the number of periods individuals waited for competency services in jail.

²**Court Orders Signed** is the number of court orders signed in the specified month for those individuals waiting for competency services in jail and any additional in-jail stays (i.e., periods of waiting for competency services in jail) starting in the specified month due to a class member entering jail from the community while awaiting a court-ordered competency service. This number does not include court orders signed for individuals waiting for competency services outside of jail.

³**From August 2018 onward**, the following data elements exclude periods of waiting for competency services in jail that have not yet ended: completion and the percent completed variables. Once the waiting period has ended, those cases will be included in the wait-time and percents.

⁴**From April 2015 to April 2017**, the inpatient evaluation and restoration compliance deadline was within 7 days from court order signature date. As of May 2017, DSHS compliance data are calculated and summarized in this table based on the modified deadline for inpatient competency evaluation and restoration services outlined in the order DSHS received on 4/26/2017 adopting the Mediated Settlement Agreement, Dkt. # 389, stating: "DSHS shall

complete inpatient competency evaluation and restorations within the shorter of either a) 7 days from receipt of order or b) 14 days from signature of order”.

To comply with the new requirements, this report captures two additional sets of compliance information beginning in May 2017. The first is percentage of orders completed within 7 days from receipt of order (if the order was received within 0 and 7 days from order signature date) (or 7 days from the beginning or notification of a period of waiting in jail). The second is percentage of all orders completed within either of the two compliance deadlines: 7 days from receipt of order (if the order was received within 0 and 7 days from order signature date) (or 7 days from the beginning or notification of a period of waiting in jail) or 14 days from order signature date (if the order was received after 7 days from order signature date).

The Outpatient Competency Restoration Program: Data Table 15

The OCRP element of the Trueblood Contempt Settlement Agreement that is managed by the Washington State Health Care Authority provides an additional option for courts to order community-based restoration services in a less restrictive environment for defendants with appropriate acuity levels in the 11 counties and four Behavioral Health Administrative Services Organization regions covered in Phases 1 and 2 of the Trueblood Contempt Settlement Agreement. In August-October 2024, Phase 3 OCRP programs covering five additional counties and two additional BHASO regions began services. A third OCRP Phase 3 facility opened in August 2025. The intent of OCRP is to provide the most appropriate level of care to the individual, ideally closer to their home community. Providing restoration services in a safe and cost-effective environment, while using the newly available community treatment program should hopefully reduce the number of people wait-listed to receive competency restoration in an inpatient setting.

This month's report covers events from May 1-31, 2026. Data from this month are considered "first-look" and are likely to change as they mature. Data tables reflecting OCRP services are included in Tables 5c, 15, Appendices A, and F. Figures 2, 5, and 6 represent the visual presentation of OCRP data in this month's report. Only data from Trueblood Class Members is reflected in the OCRP tables and figures. As a result, some months have no new OCRP data to report.

Many individuals ordered to OCRP will not appear in Table 15. Table 15 is restricted to class members, meaning individuals in jail waiting for competency restoration services at any time after the competency order is signed. Currently, many individuals ordered to OCRP are released from jail prior to the court signing the OCRP order and remain in the community until entry into OCRP. The total number of individuals enrolled in an Outpatient Competency Restoration Program (regardless of jail status) is provided in the Trueblood semi-annual report and reported quarterly in **Table 17**. Trueblood Implementation Steps of this report. The OCRP update in Table 17 begins on **page 66** of this month's report. Table 15 follows on the next page.

Table 15. OCRP Completed Restoration Orders by Month Court Order Signed

MONTH	<i>Court Orders Signed</i> ¹	7 DAYS OR LESS FROM ORDER SIGNATURE DATE	PERCENT 7 DAYS OR LESS FROM ORDER SIGNATURE DATE	ORDERS COMPLETED WITHIN 7 DAYS FROM RECEIPT OF ORDER ^{1,2}	PERCENT COMPLETED WITHIN 7 DAYS FROM RECEIPT OF ORDER ^{1,2}	ORDERS COMPLETED WITHIN 7 DAYS FROM RECEIPT OF ORDER OR WITHIN 14 DAYS FROM ORDER SIGNATURE DATE ^{1,2}	PERCENT COMPLETED WITHIN 7 DAYS FROM RECEIPT OF ORDER OR WITHIN 14 DAYS FROM ORDER SIGNATURE DATE ^{1,2}
May-25	1	1	100 %	1	100 %	1	100 %
Jun-25	3	0	0 %	0	0 %	0	0 %
Jul-25	4	3	75 %	3	75 %	3	75 %
Aug-25	6	6	100 %	6	100 %	6	100 %
Sep-25	13	6	46 %	6	46 %	6	46 %
Oct-25	7	6	86 %	6	86 %	6	86 %
Nov-25	1	1	100 %	1	100 %	1	100 %
Dec-25	7	6	86 %	6	86 %	6	86 %
Jan-26	7	7	100 %	7	100 %	7	100 %
Feb-26	1	1	100 %	1	100 %	1	100 %
Mar-26	11	9	82 %	9	82 %	9	82 %
Apr-26	6	6	100 %	6	100 %	6	100 %
May-26	3	3	100 %	3	100 %	3	100 %

Table 15 Data Notes:

¹**The OCRP was implemented July 1, 2020.** The data are pulled from the BHHA Forensic Data System and Navigator Case Management System and based on the number of periods individuals waited for competency services in jail.

²**Court Orders Signed** is the number of court orders signed in the specified month for those individuals waiting for competency services in jail and any additional in-jail stays (i.e., periods of waiting for competency services in jail) starting in the specified month due to a class member entering jail from the community while awaiting a court-ordered competency service. This number does not include court orders signed for individuals waiting for competency services outside of jail.

³**The following data elements** exclude periods of waiting for competency services in jail that have not yet ended: completion and the percent completed variables. Once the waiting period has ended, those cases will be included in the wait-time and percents.

⁴**According to the Settlement Agreement**, “For criminal defendants waiting in jail, an offer of admission to the community outpatient restoration services program will occur within the constitutional timelines for restoration as outlined by the Federal Court.” Therefore, this table captures the 3 compliance deadlines captured for inpatient competency restoration: 1) number and percent completed within 7 days from court order signature date (as stipulated from April 2015 to April 2017) and 2) number and percent of orders completed within 7 days from receipt of order (if the order was received within 0 and 7 days from order signature date) (or 7 days

from the beginning or notification of a period of waiting in jail) and 3) the number and percent of all orders completed within either of two compliance deadlines: 7 days from receipt of order (if the order was received within 0 and 7 days from order signature date) (or 7 days from the beginning or notification of a period of waiting in jail) or 14 days from order signature date (if the order was received after 7 days from order signature date) (from May 2017 onward as outlined in the order DSHS received on 4/26/2017 adopting the Mediated Settlement Agreement, Dkt. # 389).

Resources Required to Provide Timely Competency Services

2017-2021 Budget Appropriations

The state invested significant resources into beds, staffing, and programs impacting Trueblood class members. For detailed information on specific investments, review monthly reports from August 2022 and earlier at [Monitor Reports](#). On Jan. 25, 2018, Judge Pechman approved contempt fine funds to remodel WSH's Steilacoom Unit. As a result, 30-bed Steilacoom Unit opened in August 2019.

2021-2023 Budget Appropriations

The COVID-19 pandemic emerged in Washington state in February 2020 resulting in costly pandemic-related expenditures and emergency budget reductions. COVID-19's fiscal impacts became less severe over time, and significant but time-limited federal resources became available to DSHS. For detailed information on specific state investments, review monthly reports from May 2021-March 2024 at [Monitor Reports](#).

2023-2025 Budget Appropriations

The state made significant investments into Washington state's behavioral health system. These included additional beds, construction funding, funding for the purchase and operation of Olympic Heritage Behavioral Health, funding for staff retention, and funding for programs designed to streamline and improve patient care. For detailed information on specific state investments, review monthly reports from July 2023-June 2025 at [Monitor Reports](#).

2025-2027 Budget Appropriations

The 2025-2027 biennium operating and capital budgets passed the legislature near the end of the 2025 legislative session. Governor Bob Ferguson signed the budgets into law on May 20, 2025. Despite facing a revenue shortfall, DSHS is pleased to report the legislature funded DSHS' Trueblood obligations.

- \$22 million to support expansion of the Maple Lane Campus to include Olympic, Pacific, and Rainier units.
- Operating funds for Maple Lane Campus for 16 beds in Chelan Unit.
- Funds to keep Brockmann Campus in Vancouver in a "warm closure" status.
- \$22.6 million for the design and installation of emergency power systems at CSTC and ESH (West Lake and East Lake campuses)

- WSH: \$282 million to support construction over the 2025-2027 budget biennia for the new 350-bed forensic hospital and \$22.6 million to complete the design and construction of required improvements to the water distribution system across the WSH campus.
- Olympic Heritage Behavioral Health: \$8.7 million to address The Joint Commission inspection citation and a reduced operating budget reflecting the current level of direct care staff needed to operate a 74-bed inpatient psychiatric facility.

A new 16-bed crisis triage and stabilization facility is also planned for the Thurston-Mason region, funded via a partnership with the Washington State Department of Commerce.

2026 Supplemental Budget Appropriations

- State Hospital Overtime: \$14.9 million in one-time funding for overtime staffing costs at WSH and ESH.
- ESH Radio System Upgrades: \$576,000 in one-time funding to upgrade the radio system at the ESH campus to support an immediate hospital need for an Emergency all-call dispatch function.
- Maple Lane Delay: A reduction of \$20.2 million as Maple Lane Behavioral Health and Treatment Center will not spend its current appropriation due to delays in the remodel to the Baker and Chelan units.
- Eastern State Hospital Security Assessment: \$250,000 to conduct an independent security assessment of the ESH campus. The assessment will identify additional security needs, cost estimates and implementation schedules for future capital investments to provide additional security for patients and staff.
- Western State Hospital Door Replacement Project: \$1.9 million to install fire-resistant doors in Building 27 and comport with fire code requirements.
- Mental Health Admin Reductions: An ongoing reduction of \$2.7 million in reduced overtime, travel, goods/services, professional contracts and if necessary, FTE's.
- Brockmann Campus: \$995,000 in funds to keep Brockmann in a "warm closure" status through FY 2027.

Need Projections and Bed Capacity

In June 2017, Judge Pechman directed the Court Monitor to have a competency services bed need study conducted to illustrate patient demand and bed need, aiming to determine the feasibility, timeframe, compliance with court orders, and to measure the impact of community-based competency evaluation on the demand for inpatient competency evaluation and restoration beds. The TriWest Group was selected as the contractor to complete this work. The Court Monitor provided DSHS the draft report on Oct. 3, 2018. DSHS received the final report via webinar on Dec. 10, 2018.

Trueblood Key Accomplishments: May 2026

Recruiting

DSHS Talent Acquisition program staff continue to support hiring needs associated with ESH, WSH, and Steilacoom Unit.

Applicants presented to Eastern State Hospital for consideration are indicated below:

- Registered Nurses – 44 presented
- Licensed Practical Nurses – 4 presented
- Psychiatric Security Nurses – 3 presented
- Forensic Care Associates – 40 presented
- Mental Health Technicians – 28 presented
- Behavioral Health Specialists – 22 presented
- Psychology Associates – 9 presented
- Psychiatric Social Workers – 19 presented

Applicants presented to Western State Hospital for consideration are indicated below:

- Registered Nurses – 96 presented
- Licensed Practical Nurses – 21 presented
- Psychiatric Security Nurses – 29 presented
- Forensic Care Associates – 265 presented
- Behavioral Health Specialists – 47 presented
- Psychiatric Social Workers – 6 presented
- Psychology Associates – 8 presented
- Psychologists – 4 presented
- Psychiatrists – 2 presented
- Mental Health Technicians – 72 presented

Applicants presented to Steilacoom Unit for consideration are indicated below:

- Behavioral Health Specialists – 16 presented

Actions to Address Staffing Challenges

Despite workforce challenges and chronically unfilled positions at our treatment facilities, BHHA continues identifying and implementing creative solutions within its existing authority and partnering with executive leadership, state human resources, labor, and others to develop and implement innovative approaches to recruiting and retaining critical staff positions.

Implementing new policies and practices to attract and retain passionate, talented staff remains critical to success, and BHHA continues this critical focus in 2026. The overall vacancy rate at BHHA treatment facilities has stabilized. However, facilities are still challenged with hiring licensed practical nurses (LPNs), psychologists, and psychiatrists to provide essential psychological assessments and evaluations. As of early June 2026, vacancies in these classes now range between 18-39 percent. The ability to maintain current restoration capacity is a challenge, and staffing new facilities' capacity is also very challenging.

BHHA's HQ-based staffing and outreach team focuses on filling positions for the additional facilities being built as well as providing recruitment, outreach, and hiring support for vacancies within existing facilities and programs. This team implements partnerships, attends job fairs, and fosters outreach connections with a focus on high schools, community colleges, trade schools, tribal governments, and professional and community organizations.

Over recent years, the Legislature has taken several steps to enable our recruitment and retention efforts. Most recently, during the 2025 legislative session, the following actions were taken in support of staff retention:

- Most employees received a three-percent cost of living adjustment effective July 1, 2025.
- Effective July 1, 2026, most employees are scheduled to receive an additional two-percent cost of living adjustment.
- Forensic Evaluators had their range increased by two salary bands by July 1, 2025.

Trueblood Programs



Behavioral Health & Treatment Center Data

This section presents monthly data for the current month and the trailing year (13 months), with a year-over-year average comparison. DSHS Behavioral Health & Treatment Center – Steilacoom Unit is presented in Table 16 below (continues on the following page). DSHS Behavioral Health & Treatment Center – Cascade Unit closed permanently on June 28, 2024. Please see Table 17's section on Cascade Unit on **page 65** for additional details.

Table 16. Monthly BHTC Data for Steilacoom Unit

	May 25	Jun 25	Jul 25	Aug 25	Sep 25	Oct 25	Nov 25	Dec 25	2025 Avg	Jan 26	Feb 26	Mar 26	Apr 26	May 25	2026 Avg
Census (last day of month)	28	27	30	26	26	28	30	26	28.3	27	27	26	23	27	26.0
Total patients admitted	9	6	13	10	10	13	10	10	10.7	9	13	10	9	10	10.2
Completed and found competent (1st restoration)	7	1	1	4	4	7	4	11	4.8	1	6	5	6	2	4.0
Not likely restorable (transported back to jail)	0	1	0	0	0	0	0	0	0.5	1	1	0	0	0	0.4
Court order lapsed (transported back to Jail)	1	1	1	0	0	0	0	0	0.3	0	0	1	0	0	0.2
Felony patients completed and found not likely restorable (1st restoration)	2	2	1	2	2	7	1	1	1.7	2	0	5	0	0	1.4
Misdemeanor patients not restored (no further treatment by law)	0	0	0	0	0	0	0	0	0.3	0	1	1	0	0	0.4
Total transferred to state hospital for:	1	0	1	5	5	1	1	1	1.0	1	1	4	0	0	1.2
Physical aggression	1	0	0	1	1	1	0	0	0.3	0	1	0	0	0	0.2
Sexually inappropriate behavior	0	0	0	0	0	0	0	0	0.0	0	0	0	0	0	0.0

	May 25	Jun 25	Jul 25	Aug 25	Sep 25	Oct 25	Nov 25	Dec 25	2025 Avg	Jan 26	Feb 26	Mar 26	Apr 26	May 25	2026 Avg
Medical reasons	0	0	0	0	0	0	0	0	0.0	0	0	0	0	0	0.0
Court ordered treatment at state hospital	0	0	1	2	2	0	1	1	0.5	1	0	2	0	0	0.6
Other	0	0	0	1	1	0	0	0	0.1	0	0	2	0	0	0.4
Total patients eloped	0	0	0	0	0	0	0	0	0.0	0	0	0	0	0	0.0
Total recommended for early evaluation	0	1	1	0	0	0	0	1	0.3	0	0	0	0	0	0.0
Total recommended for 2nd 90-day order	2	2	3	4	4	6	3	3	3.8	5	2	3	3	2	3.0
Total recommended for 3rd 90-day order	0	0	0	0	0	0	0	0	0.3	0	0	0	0	0	0.0

Data Note:

The data are dynamic, and the most recent results generally will continue to change and become more reliable over time as the data mature. Likewise, due to the Trueblood lawsuit, case prioritization, civil conversion cases, triage cases, periodic lengthy wait times and other considerations, some cases will not show as completed cases in the data until the cases are resolved. The department cautions against comparing the data in this publication to other department publications due to differences in data maturity, time frames, databases, and other sourcing parameters that may not allow for a direct comparison.

Trueblood Programs



Trueblood Implementation Steps Taken and Planned: May 2026

The table below shows implementation steps taken and planned and is updated for the current reporting period.

Several completed requirements have been removed from this table and are summarized in **Table 19. Archived Achievements.**

Table 17. Trueblood Implementation Steps

A. Court Appointed Monitor Coordination: Monthly reports	
Key Milestones	Released May 2026 report.
Status / End Dates	Complete
Anticipated Outcome & Assumptions	• Maintain compliance with the Court. • Use data to review and improve the provision of forensic services.
Results Achieved & Barriers to Completion	May 2026 report released to stakeholders.

B. Legislative Coordination: Consult with key partners and stakeholders, including out of state agencies, regarding potential legislation, potential certification of forensic evaluators, and other opportunities to enhance quality assurance.	
Key Milestones	Consult key partners including out-of-state agencies.
Status/End Dates	Ongoing
Anticipated Outcome & Assumptions	• Expanded pool of forensic evaluators would help improve timeliness. Licensure would provide quality assurance and create professional standards for forensic evaluators. • Develop long-term certification of forensic evaluators, consistent with the Trueblood Court Monitor's recommendations on mid- and long-term performance to implement a forensic certification program to sustain performance.

Results Achieved & Barriers to Completion	Consultation with other states regarding certification of forensic evaluators continues through periodic videoconferences and follow-up contacts with key staff in other states. Information about credentialing from other states was shared with the forensic evaluator supervisors. Since May 2021, OFMHS has focused more on internal quality assurance/performance improvement for reports. This included updating the forensic report writing guidelines, and engaging in a peer review and collaborative policy development process. This process was completed in September 2025 followed by the union's request for informal bargaining. The bargaining meeting was held on Dec. 12, 2025. Implementation was agreed on with a targeted roll out for end of January/beginning of February 2026 and on-going discussion in future quarterly union meetings. The first peer review process started at the end of January and based on feedback, any necessary adjustments will be made to the procedure. In May 2026 the program is starting the fourth cohort, and progress and suggestions for improvement were shared in a UMCC meeting. The biggest change discussed was removing an intermediary in the process and the recommended change is to provide the peer feedback directly to the individual's supervisor.
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C. Labor Coordination: Engage labor leaders and members.	
Key Milestones	Conduct ongoing bi-monthly meetings with labor leaders.
Status/End Dates	Ongoing
Anticipated Outcome & Assumptions	- Discuss policy, budget and operational changes likely required to comply with the Trueblood requirements. - Obtain staff necessary to safely support operation of additional forensic and civil beds at the state hospitals. - Obtain necessary psychiatrists and physicians to supplement services proved by employees at WSH to safely support the operation of additional forensic and civil beds.
Results Achieved & Barriers to Completion	No active demand to bargain for this reporting period.

D1. Data Collection and Fiscal Modeling: Monthly report data collection	
Key Milestones	Identify and obtain needed data.

Status/End Dates	Complete
Anticipated Outcome & Assumptions	Obtain data for monthly reports and develop standardized reports to inform policy development and implementation.
Results Achieved & Barriers to Completion	Data collection is ongoing. The Forensic Data System technical team continues to meet bi-monthly with program staff and the Research and Data Analysis Unit. Reporting needs are identified, run through change control, and implemented as needed. This process is operationalized.
D2. Data Collection and Fiscal Modeling: Institute data audit process.	
Key Milestones	Review data and files of cases with anomalies to identify trends.
Status/End Dates	Complete
Anticipated Outcome & Assumptions	Ensure completeness and accuracy of wait list data.
Results Achieved & Barriers to Completion	Data validation process is ongoing. IT project team and RDA analysts, research data anomalies to determine the cause, impact, and remediation needed.

E1. Human Resources: Hire OFMHS HQ positions.	
Key Milestones	Hire and onboard.
Status/End Dates	Complete
Anticipated Outcome & Assumptions	Provided infrastructure for forensic services system; improved effective and timely competency services provision.
Results Achieved & Barriers to Completion	For evaluators, all authorized and required positions to enact Phase 1 have been filled.
E2. Human Resources: Hire additional hospital ward staff.	
Key Milestones	Conduct targeted hiring events; pursue contracting
Status/End Dates	In progress
Anticipated Outcome & Assumptions	Obtain required staff of all classes to safely and appropriately operate additional civil and forensic beds and to meet data collection, analysis and reporting needs.

Results Achieved & Barriers to Completion	Talent Acquisition recruiting efforts continue. See page 55 for additional details on recruiting and retention initiatives.
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F1. Competency Evaluation: Build capacity for out-station sites.	
Key Milestones	Site agreements; outstation sites operational
Status/End Dates	Complete
Anticipated Outcome & Assumptions	Increased capacity at out-station sites will reduce wait time for evaluations.
Results Achieved & Barriers to Completion	Most evaluations at outstation sites and all evaluations at BHTCs have been conducted by telehealth to increase efficiency. The telehealth system accommodates interpreter services and attorney requirements to be present. Refer to page 64 for additional information on telehealth sites and monthly data.
F2. Competency Evaluation: Coordinate with forensic mental health system partners.	
Key Milestones	Regular meetings with county stakeholders
Status/End Dates	Ongoing
Anticipated Outcome & Assumptions	Stakeholder meetings will focus on topics where collaborative work is required to meet the requirements of the Trueblood decision.
Results Achieved & Barriers to Completion	OFMHS partners with King County's Department of Behavioral Health and Recovery to convene a group to address issues related to Trueblood Class Members. Participants include police, behavioral health providers, shelter services, prosecutors, defenders, DRW, DSHS, and more. The next meeting has not yet been scheduled.
F3. Competency Evaluation: Continue current county-conducted evaluation system until 2018.	
Key Milestones	Establish quality criteria for evaluation reports.
Status/End Dates	Ongoing
Anticipated Outcome & Assumptions	Obtain data needed from counties in order to meet court-ordered reporting requirements.
Results Achieved &	The Quality Assurance program for competency reports began Nov. 1, 2017. Forensic evaluator supervisors use a manual of standards for competency

Barriers to Completion	evaluations and audit competency evaluation reports written by their direct reports. During Q1 2026, 100 percent of forensic evaluators had competency evaluation reports audited by supervisors. A total of 143 competency evaluation reports were reviewed during this quarter.
F4. Competency Evaluation: Explore and pursue triage system possibilities.	
Key Milestones	Roll out Phase 2.
Status/End Dates	Complete
Anticipated Outcome & Assumptions	Establish an efficient evaluation to identify individuals who need inpatient services due to a serious mental health condition; who clearly do not require inpatient evaluation services; or who are clearly competent due to changes in their condition since the issuance of an evaluation order (i.e., no longer drug affected).
Results Achieved & Barriers to Completion	As of May 31, 2026, OFMHS has received 1,099 triage referrals from jail staff/defense. Of those referrals, 672 were approved, 315 referrals were denied, and 112 referrals were withdrawn before placement could be made. On Nov. 2, 2016, OFMHS began calling jails holding in-custody defendants waiting 14 days for a competency evaluation. The calls notify jail staff of the Triage Consultation and Expedited Admissions process. Since tracking began, approximately 3,998 calls have been made including 10 calls to jails in December 2024. After several years performing these evaluation check calls, DSHS' experience is that they have brought no material benefit to class members and have only soured relations with jail partners. After consult with the plaintiffs, December 2024 was the final month of jail call checks, and this metric will not be updated in future editions of this report.
F5. Competency Evaluation: Develop Telehealth video-conferencing systems to assist in the completion of evaluations.	
Key Milestones	State-wide implementation and utilization of technology.
Status/End Dates	Ongoing
Anticipated Outcome & Assumptions	Establishing this technology in multiple locations around the state (especially in rural areas) will allow OFMHS to conduct more evaluations, thereby helping to meet court-ordered requirements.

Results Achieved & Barriers to Completion	The telehealth system began operations in 2018 and has regularly expanded its ongoing operations to include additional partners. OFMHS continues to educate partners on this technology. With the COVID-19 pandemic, telehealth technology saw increased interest from entities seeking to continue evaluations while maximizing safety of clients and staff. As stakeholders have grown increasingly comfortable with telehealth technology, they have gained appreciation for telehealth evaluation's efficiency for all parties. OFMHS has reached out to over 50 jails statewide to review and further expand telehealth use. Telehealth processes are used in the following county jails: Benton, Chelan, Clallam, Clark¹, Cowlitz², Ferry, Franklin, Grant, Grays Harbor, Island, Jefferson, King, King-Maleng Regional Justice Center, Kittitas, Okanogan, Pacific, Pend Oreille, San Juan, Skagit, Snohomish, Spokane, Stevens, Thurston, Walla Walla, Whatcom, Whitman, and Yakima; in the following local jails: Aberdeen, Enumclaw, Forks, Hoquiam, Issaquah, Kent, Kirkland, Marysville, Nisqually, Puyallup, South Correctional Entity (SCORE), Sunnyside, and Yakima City jails, Airway Heights and Geiger Corrections facilities in Spokane; and in the following tribal jails: Chehalis, Colville Tribes Corrections Detention Facility, Nisqually Tribe Corrections Center, and Yakama Nation Correction & Rehabilitation Facility. DSHS' competency restoration programs at BHTC – Steilacoom Unit, ESH, WSH, and HCA's OCRP sites in Spokane, Pierce, and Southwest Washington counties can also provide videoconferencing and telephonic presence of secondary parties. OFMHS continues to offer support to partners to assist in resolving barriers to telehealth implementation. OFMHS also continues to provide information and support those entities that have implemented a telehealth solution. Additionally, OFMHS has developed a small profile Microsoft Teams room solution to increase telehealth capabilities in facilities, to reduce technical issues, and to move toward a standardized hardware and software package. This new solution is being installed in areas at the state hospitals and BHTCs for use in telehealth evaluations (installation has already been completed in many locations) and is also being offered to jails. This telehealth setup has been installed in the Yakima, Snohomish, Chelan, Skagit, Asotin, and Clark County Jails. DSHS is also having conversations regarding the new telehealth solution with the Pierce County Jail and the Kitsap County Jail, and is working with Klickitat, and Thurston County Jails on installing the system. Two additional jails have also reached out to meet regarding installing the new telehealth equipment. An agency e-mail address is available specifically for telehealth issues, and a telehealth committee meets regularly to review current needs and processes.
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	¹Notes the ability for telephonic presence of defense counsel and interpreter in certain cases. ²Hybrid process where the evaluator or the defense counsel is present in person to facilitate use of equipment with other parties remotely. Court orders have authorized 23,971 telehealth evaluations since August 2018. Clients or their attorneys have rejected 1.5% of attempts resulting in 23,618 completed telehealth evaluations. For the last 12 months, telehealth evaluations have averaged approximately 457 evaluations per month. This data is current through June 10, 2026.
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G1. Competency Restoration: SH addition 45 beds, WSH addition 40 beds, ESH addition of 50 beds	
Key Milestones	Bed occupancy with forensic patients.
Status/End Dates	Complete
Anticipated Outcome & Assumptions	Serves overall plan to add beds and expand state hospital forensic bed capacity to meet court-ordered requirements.
Results Achieved & Barriers to Completion	The Legislature funded the requests to operate 45 additional beds in BHTC - Steilacoom Unit and WSH's South Hall 5 ward and convert 60 civil beds to 42 forensic beds on two wards at WSH. South Hall's S5 expanded from 15 beds to 30. S5 reached full patient capacity in fall 2018. BHTC - Steilacoom Unit opened on WSH's campus in late August 2019. WSH's wards' final configurations resulted in 40 new beds instead of 42, accommodating a seclusion room on each ward. E4 started admitting patients on Feb. 8, 2021, and E3 started admitting patients on Feb. 15, 2021. The Legislature funded the request to renovate two 25-bed forensic competency restoration units at ESH. ESH's Ward 1N3 opened June 1, 2020. Ward 3N3 opened Aug. 3, 2020.
G2. Competency Restoration: Provide Restoration Treatment at YCRP and at DSHS Behavioral Health & Treatment Center – Maple Lane Campus - Cascade Unit	
Key Milestones	Restore patients to competency.
Status/End Dates	Complete

Anticipated Outcome & Assumptions	Obtain data needed from counties in order to meet court-ordered reporting requirements.
Results Achieved & Barriers to Completion	The last patient transferred from Yakima CRP on July 26, 2021. The program officially closed on Aug. 14, 2021. Comprehensive finished all close out activities per the ramp down plan. BHTC - Cascade Unit began its ramp down at the end of May 2024. On June 11, 2024, all residents transferred to WSH, BHTC – Steilacoom Unit, or OCRP. Cascade Unit closed to class members on June 28, 2024.
G3. Competency Restoration: Provide Restoration Treatment at DSHS Behavioral Health & Treatment Center – Steilacoom Unit.	
Key Milestones	Open BHTC - Steilacoom Unit; restore patients to competency
Status/End Dates	Complete; Ongoing
Anticipated Outcome & Assumptions	- Identified alternate facility capacity to meet Trueblood compliance. - Collaborated with Court parties to open the facility. - To meet or exceed the restoration rates at both state hospitals.
Results Achieved & Barriers to Completion	On June 8, 2026, the census was 30. Currently, there are two vacant on-call BHS3 positions and one vacant BHS3 NOC shift position with all positions in active recruitment. The facility is actively engaged in ongoing work to correct door issues in coordination with relevant internal and external partners. At this time, work remains in progress and no additional updates are available. The April 16, 2026 quarterly length of stay report indicates Steilacoom Unit has lengths of stay for 45-day orders similar to other facilities. Refer to Table 16. Monthly BHTC Data for Steilacoom Unit for additional data on Steilacoom unit.
G4. Competency Restoration: Implementation of OCRPs, Phase 1	
Key Milestones	Diversion programs are operational.
Status/End Dates	Complete
Anticipated Outcome & Assumptions	Development and implementation of OCRP in the Pierce, Spokane, and Southwest regions.
Results Achieved &	Work is ongoing to expand capacity to serve all appropriate individuals, including adding new staff as part of Phase 4 program enhancements. In May,

Barriers to Completion	HCA completed site visits with providers in the Southwest region. The site visits included discussion of how the new Phase 4 enhancements are working and meeting with current program participants. OCRP contractors continue to use support funds to assist with transitional housing and to acquire additional temporary housing and bed placements for OCRP participants.
G5. Competency Restoration: Implementation of OCRPs, Phase 2	
Key Milestones	Diversion programs are operational.
Status/End Dates	Complete
Anticipated Outcome & Assumptions	Development and implementation of OCRP in the King region.
Results Achieved & Barriers to Completion	The Phase 2 OCRP provider can serve up to 14 OCRP-enrolled participants between their two OCRP-dedicated houses. They are providing Breaking Barriers competency restoration programming in the homes for residents. They continue providing competency restoration services to people at their outpatient location who are not enrolled in their housing. They continue providing extra support in the drop-in area where OCRP participants can access additional resources such as a sharing library, food boxes, and a clothing closet. Community House continues to serve a record number of OCRP participants. HCA continues to work closely with them to provide technical support as their program grows. HCA is evaluating options to increase program capacity in the King region in response to the growing program demand.
G6. Competency Restoration: Implementation of OCRPs, Phase 3	
Key Milestones	Diversion programs are operational.
Status/End Dates	Complete
Anticipated Outcome & Assumptions	Development and implementation of OCRP in the Thurston/Mason and Salish regions.
Results Achieved & Barriers to Completion	Peninsula Behavioral Health, Olympic Health and Recovery Services, and Kitsap Mental Health Services OCRP teams continue taking referrals and are serving participants enrolled in OCRP. HCA completed site visits with Olympic Health and Recovery Services and Kitsap Mental Health Services in April and with Peninsula Behavioral Health in May.

G7. Competency Restoration: OCRP enrollment	
Key Milestones	OCRP enrollment continues to increase.
Status/End Dates	Ongoing
Anticipated Outcome & Assumptions	Enrollment in OCRP increases as implementation of the four phases continues.
Results Achieved & Barriers to Completion	Many people ordered to OCRP will not appear in Tables 5c. or 15. Tables 5c. and 15 are restricted to class members, meaning people in jail at the time their competency restoration order is signed. Currently, many people ordered to OCRP are released from jail prior to the court signing the OCRP order. The total number of people enrolled in an Outpatient Competency Restoration Program (regardless of jail status) is provided in the Trueblood Semi-Annual Report and reported quarterly below and within Table 15. OCRP Completed Restoration Orders by Month Court Order Signed. RDA provides periodic OCRP enrollment updates. The revised table counts align with SAR reporting. The counts in this section will not match those in Tables 5c. or 15, which are specific to class members (persons held in jail following an OCRP restoration order, see Tables 5c. or 15, footnote 2). The OCRP providers ceased using Excel spreadsheets in March 2023 and are entering all data in the Navigator Case Management system. The Trueblood Semi-Annual Report is the primary reporting mechanism for Trueblood Settlement Agreement implementation programs. Aggregate counts will be provided quarterly in this report for monitoring purposes. The data below is from July 1, 2020, through March 31, 2026: 491 unduplicated individuals enrolled 78 active 413 discharged - Reasons discharged: 142 opined competent 124 conditional release revoked 50 charges dismissed 34 opined not competent 17 returned to jail 16 inpatient civil psychiatric care 6 opined not restorable 5 deaths 12 legal authority ended

	○ 2 inpatient medical care ○ 5 other ● Discharge location: ○ 256 community ○ 63 state hospital ○ 62 jail ○ 6 BHTC ○ 26 unknown Source: Navigator Case Management system. Review the March 2026 SAR for data definitions.
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G8. Competency Restoration: County transport of patients	
Key Milestones	Coordinate with counties to develop transport protocols.
Status/End Dates	Ongoing
Anticipated Outcome & Assumptions	● Ensure timely transport of patients to support delivery of competency services as directed in court order.
Results Achieved & Barriers to Completion	No issues were raised during this reporting period concerning county transport of patients.

H. Diversion Alternatives	
Task	Implement 2E2SSB 5177 (2015) provisions for dismissal of charges and referral to treatment.
Key Milestones	Diversion programs are operational.
Status / End Dates	Ongoing
Anticipated Outcome & Assumptions	● Prosecutor can dismiss criminal charges without prejudice and refer to community-based mental health services.
Results Achieved & Barriers to Completion	OFMHS liaison and diversion specialist continues to monitor the programs and provides technical assistance as needed to address barriers. The liaison and diversion specialist has engaged the programs with technical assistance, brainstorming ways to overcome challenges. DSHS continues exploring options for enhancement and expansion of these programs.

	OFHMS has received pilot funding for two “Diversion Services” positions and is working to hire those positions. One will be located with the Spokane County Jail and the other with the SCORE Jail in King County.
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Note:

By agreement with the Court Monitor, completed requirements were removed from **Table 17.** Trueblood Implementation Steps and moved to **Table 19.** Archived Achievements.

Data Note:

The data are dynamic, and the most recent results generally will continue to change and become more reliable over time as the data mature. Likewise, due to the Trueblood lawsuit, case prioritization, civil conversion cases, triage cases, periodic lengthy wait times and other considerations, some cases will not show as completed cases in the data until the cases are resolved. The department cautions against comparing the data in this publication to other department publications due to differences in data maturity, time frames, databases, and other sourcing parameters that may not allow for a direct comparison.

Trueblood Programs



Feb. 8, 2016 Court Order Status Report/Updates

The status updates pursuant to the Feb. 8, 2016 Court Order are shown in the table below.

Several completed requirements have been removed from this table and the removed requirements from April 2020, May 2020, and August 2024 are summarized in **Table 19**. Archived Achievements.

Table 18. Court Order Status Updates

Requirements	Date	Status	Progress Notes
1. Implement a triage system to sort class members waiting for in-jail evaluations by the acuity of their mental illnesses and their current manifestations, by the seriousness of their crimes, and by the amount of resources their cases require:			
C. Reporting on the implementation and effectiveness of the triage plan in Defendants' monthly reports to the Court Monitor.	Beginning April 15, 2016	Ongoing	Refer to 3C. & 4C. below.
2. Eliminate the backlog of class members currently waiting for in-jail evaluations:			
E. Completing evaluations for all backlog cases (any patient waiting more than 14 days at the end of the month).	April 15, 2016	Ongoing	Of the 566 jail-based evaluation orders signed in April 2026, approximately 541 were completed within 14 days, which is 96%. This number may change as the data continue to mature.
3. Implement a triage system to sort class members waiting for in-hospital evaluations by the acuity of their mental illnesses and their current manifestations, by the seriousness of their crimes, and by the amount of resources their cases require:			
C. Reporting on the implementation and effectiveness of the triage plan in Defendants' monthly reports to CM.	Beginning April 15, 2016	Ongoing	For additional information, review "F4. Competency Evaluation: Explore and pursue triage system possibilities."

<i>Requirements</i>	<i>Date</i>	<i>Status</i>	<i>Progress Notes</i>
4. Implement a triage system to sort class members waiting for restoration services by the acuity of their mental illnesses and their current manifestations, by the seriousness of their crimes, and by the amount of resources their cases require:			
C. Reporting on the implementation and effectiveness of the triage plan in Defendants' monthly reports to CM.	Beginning April 15, 2016	Ongoing	For additional information, review "F4. Competency Evaluation: Explore and pursue triage system possibilities"
5. Report on the implementation status of the CMS Plan of Correction:			
B. Reporting on the implementation status in Defendants' monthly reports to the CM.	Beginning March 15, 2016	Ongoing	DSHS entered into a second System Improvement Agreement with the Centers for Medicare and Medicaid Services. This agreement ran from Nov. 2, 2017-July 2, 2018 and defense counsel shared it with Dr. Mauch on Nov. 3, 2017. As a result of a court order in April 2018, the department worked with Plaintiffs and the Court Monitor in developing a bed capacity/expansion plan. WSH was resurveyed May 2018 and did not meet all the Conditions of Participation with CMS. WSH was decertified July 9, 2018. WSH continues to work using functional work teams towards CMS certification. ESH remains accredited by The Joint Commission and CMS certified. The Legislature funded the new hospital in phases, which will be required to meet COPs for CMS certification. The project broke ground on Oct. 17, 2024.
6. Plan for recruiting and staffing 30 beds at WSH after compliance with CMS's terms of participation is achieved in March 2018:			
C. Reporting on the implementation status of the plan and timeframe in Defendants' monthly reports to the CM.	Beginning April 15, 2016	Ongoing	DSHS entered into a second SIA with CMS. This agreement ran from Nov. 2, 2017-July 2, 2018 and defense counsel shared it with Dr. Mauch on Nov. 3, 2017. As a result of a court order in April 2018, the department worked with

<i>Requirements</i>	<i>Date</i>	<i>Status</i>	<i>Progress Notes</i>
			Plaintiffs and the Court Monitor in developing a bed capacity/expansion plan. WSH was resurveyed May 2018 and did not meet all the COP with CMS. WSH was decertified July 9, 2018. WSH continues to work using FWTs towards CMS certification. PSHB Sec. 204 budgeted for the 30 beds at WSH and was completed prior to CMS decertification.
<i>8. Remove barriers to the expenditure of the \$4.8 million in currently allocated diversion funds:</i>			
D. Executing contracts for implementation by the selected providers.	April 15, 2016	Complete	Prosecutorial diversion was funded for FY'26 effective July 1, 2025-June 30, 2026.

Note:

By agreement with the Court Monitor, completed requirements were removed from **Table 17**. Trueblood Implementation Steps beginning with the April 2020, May 2020, and May 2024 reports and moved to **Table 19**. Archived Achievements.

Trueblood Programs



July 7, 2016 Contempt Order Status Updates

The three status updates required in the July 7, 2016 Court Order are below:

- (1) Monetary sanctions – fines are imposed on a per class member, per day basis. On the 15th of every month, DSHS is required to submit contempt fines data to the Court. These data were submitted to the Court on August 15, 2016 and will be included in this report, when finalized each month, as Appendices I, J, and K (if applicable);*
- (2) Diversion plans – DSHS is ordered to develop, in consultation with the Court Monitor, plans for the expenditure of the contempt fines; and*
- (3) Wait time data – DSHS shall submit to the Court wait time data in a manner identical to the data submitted on June 17, 2016 in the declaration of Bryan Zolnikov. This data is included in this report on Tables 12-15.*

Aug. 15, 2016 Order Modifying Permanent Injunction as to In-Jail Competency Evaluations

Pursuant to the August 15, 2016 Court Order, the department must provide in-jail competency evaluations within 14-days of a signed court order. When an in-jail evaluation cannot be completed within 14-days and good cause applies (i.e., delay due to clinical reasons, attorney, interpreter, or defense expert), an extension from the ordering court must be secured or DSHS must immediately admit the individual to a state hospital to finish conducting the evaluation. In order to comply with the reporting requirements of the Court Order, DSHS identified a need to revise both the current process used for seeking extensions from the criminal court as well as the data collected during that process. Since the August 15 Court Order, DSHS identified a series of necessary changes that will enable the department to comply with the Order, including the following:

- (1) Develop a list of data elements needed to comply with the Court Order to include additional delay data;*
- (2) Develop a data dictionary to define the data elements needed;*
- (3) Develop a process of reporting the information to the courts for the exception requests;*
- (4) Identify the cutoff date for seeking an exception;*
- (5) Develop a standardized form that can be used for seeking good cause exceptions;*
- (6) Develop an operating procedure to guide evaluators through the new good cause process;*
- (7) Coordinate with the Attorney General's Office to ensure adequate representation;*
- (8) Develop a process for collecting the data to report to the courts for the exceptions and to maintain for monthly reporting;*
- (9) Develop a model for the delays and the data pertaining to the delays; and*
- (10) Modify the current IT systems or develop a new database in which to maintain the information once all above steps are completed.*

DSHS implemented FDS on Aug. 1, 2018. The system's design provided for data elements needed to report to the courts including implementation of the new forensic algorithm waitlist. Data was migrated from existing systems and provided the starting point for DSHS

on August 1, 2018. The project team continues to support FDS and its users to provide increased data granularity for reporting out of a new system.

The Forensic Advisory Committee meets semi-monthly and provides business process clarification and recommendations to the technical team. FAC also provides input during ongoing system optimization and future enhancements. Their recommendations are referred to the Governance Committee when appropriate. Governance meets at least monthly to monitor status, render final decisions on key topics, and prioritize future functionality ensuring that IT project work aligns with the needs of the Court and other stakeholders.

April 26, 2017 Order Adopting the Parties' Mediated Settlement Agreement

As indicated below, the April 26, 2017 order partially adopting the parties' mediated Settlement Agreement, modified prior court orders regarding outreach, deadlines, and notification requirements specific to deadlines for evaluation and restoration services.

Having reviewed the Joint Motion to Adopt the Mediated Settlement Agreement, Dkt. # 389, and discussed the proposed agreement with all Parties at the status hearings held on March 21, 2017 and April 18, 2017, the Court partially adopts the Agreement of the parties, and ORDERS that the prior orders of the Court are MODIFIED in the following manner:

- (1) Outreach: The Parties will jointly generate outreach documents to inform state courts of their statutory obligations to provide orders for competency services within twenty-four hours, as well as to inform the state courts of a summary of the Trueblood litigation and injunction. The Parties will jointly request the opportunity to present to Washington State judicial education programs and other outreach that the Parties jointly deem necessary to ensure third Parties are aware of their obligation to timely provide orders for competency services.*
- (2) Deadline for in-jail evaluations: DSHS shall complete in-jail competency evaluations within the shorter of either a) 14 days from receipt of order or b) 21 days from signature of order. Both sets of data will continue to be tracked in DSHS' monthly reports.*
- (3) Deadline for in-patient evaluation and restoration services: DSHS shall admit class members for either inpatient competency evaluation or restoration within the shorter of either a) 7 days from receipt of order or b) 14 days from signature of order. Both sets of data will continue to be tracked in DSHS' monthly reports.*
- (4) Receipt of Order: When sent electronically, orders are deemed received as of the time they are electronically transmitted to the Department.*
- (5) Trigger Point for Notice to Plaintiffs' Counsel: If at any point in the future the percentage of orders received within 3 days of signature drops below the table 1 benchmarks for two consecutive months, the Parties shall meet and confer within 30 days to determine if there are factors within Defendants' control that are causing delays in order transmission that can be changed and/or if there are factors beyond the Defendants' direct control that the Parties can collaborate to influence in the direction of faster transmission of orders.*

Table 1. *Percentage trigger for orders received within 3 days of signature*

<i>Jail-based evaluation orders</i>	93
<i>Inpatient competency orders</i>	85

(6) Data Collection: Defendants will continue to track the data referenced in paragraphs 2, 3, and 5, above, and currently reflected in Appendix A of DSHS' Monthly Reports. Additionally, when DSHS issues its monthly reports, it will simultaneously provide the data from Appendix A in Excel format to Plaintiffs.

The Court ORDERS that from this point forward, calculation of compliance with the Court's Injunction, Dkt. #131, calculation of compliance with the Modified Injunction as to In-jail Evaluations, Dkt. #303, calculation of contempt under the Order of Contempt, Dkt. #289, and any other aspect of the Court's prior rulings that are not consistent with the Agreement text set forth above, are MODIFIED to be in conformance with this Order.

The enumerated orders above, especially numbers two, three, and five, can be viewed in data presented within the monthly *Trueblood* report or in data displayed in the appendices that follow. For item two, the applicable data can be reviewed in Appendix A, Tables 3, 6, 9. For item number three, the data can be viewed in Appendix A, Tables 4, 5a., 5b., 5c., 7, 8, 10, 11. Item number five's data is viewable in the non-numbered tables available in Appendix G.

Trueblood Programs



By agreement with the Court Monitor, completed requirements were removed from **Table 17**. Trueblood Implementation Steps and **Table 18**. Court Order Status Updates beginning with the April 2020, May 2020, and May 2024 reports and moved here to **Table 19**. Archived Achievements.

Table 19. Archived Achievements

Table Source	Title	Task Name	Date Completed	Date Removed
15	Monthly RTF Data for Yakima			
		Monthly data for the current month and the trailing year (13 months), with a year-over-year average comparison	July 2021	October 2021
15	Monthly BHTC Data for Cascade Unit			
		Monthly data for the current month and the trailing year (13 months), with a year-over-year average comparison	June 2024	September 2024
17	Legislative Coordination			
		Implement Engrossed Substitute Senate Bill 6656: Funding applications.	Final recommendations of the Task Force were due December 2020.	August 2024
17	Data Collection and Fiscal Modeling			
		Forensic Data System design/ development	October 2019	August 2024
		FDS Post-implementation Processes	May 2021	August 2024
18	Implement a triage system to sort class members waiting for in-jail evaluations by the acuity of their mental illnesses and their current manifestations, by the seriousness of their crimes, and by the amount of resources their cases require			
		Producing a triage plan for review and comment	March 2016	April 2020
		Putting the triage plan into effect, after accounting for the comments received	March 2016	April 2020
18	Eliminate the backlog of class members currently waiting for in-jail evaluations			
		Formally notifying DSHS's forensic evaluators and Pierce County's panel evaluators of plan to eliminate the backlog of	February 2016	April 2020

<i>Table Source</i>	<i>Title</i>	<i>Task Name</i>	<i>Date Completed</i>	<i>Date Removed</i>
		people waiting for in-jail evaluations, requesting their help in doing so, and providing plans to get evaluations done through the use of extra duty pay and other methods available		
		Preparing a list of all backlog cases, organized by jail and by county	March 2016	April 2020
		Finalizing recruitment of evaluators to aid in the backlog elimination effort and setting a schedule for the evaluation of each backlog case	March 2016	May 2020
		Initiating the backlog elimination effort	March 2016	May 2020
18	Develop a reliable and valid client-level data system to support better management and accountability of the forensic services system			
		Implementing revisions to the existing system or initiating development of a new forensic data and management information system. The decision was to initiate new system development efforts.	January 2020	May 2024

Note:

Tables are labeled with their number at time of retirement.

Trueblood Programs



Appendices

Appendices A-G: Data Tables; Class Member Evaluation/Restoration Information; Class Member Restoration Information for the Cascade Unit and Steilacoom Unit Programs; Outpatient Competency Restoration Program; and Percent of Court Orders Received Within Three Days

The state submits this file with the DRAFT and FINAL reports, and it includes data tables as well as order received rate data.

Appendix H: Outliers and Delay Comments

The state submits this file with the DRAFT and FINAL report. It contains the outlier data and delay comments.

Appendix I: Calculation of Inpatient Contempt Fines

The state submits this file with the FINAL report only. It contains the calculation of inpatient contempt fines data.

Appendix J: Calculation of Jail-Based Contempt Fines

The state submits this file with the FINAL report only. It contains the calculation of in-jail contempt fines data.

Appendix K: Calculation of Outpatient Contempt Fines (If Applicable)

*The state submits this file with the FINAL report only, and it contains the calculation of outpatient contempt fines data (**Appendix K only appears in the report during months where outpatient contempt fines are accrued**).*

Appendix L: Good Cause Exceptions

The state submits this file with the FINAL report only. It contains the good cause extension request data.